



Jogesh Chandra Chaudhuri Law College

Students' Union

30, Prince Anwar Shah Road, Kolkata, 70003
Email: jccclcsu.kolkata@gmail.com Phone: 9831948661 / 9831464712

- *By the Students*
- *Of the Students*
- *For the Students*

6TH SEMESTER LAW OF CRIMES NOTES

INITIATED BY

ALMINHAZ KARIM
(COVID 19 CONVENOR)

ARRANGED BY	
ABHRAJIT ROY CHOWDHURY	ANKAN DAS
CO CONVENOR <i>E – ACADEMICS COMMITTEE</i>	CO CONVENOR <i>E – ACADEMICS COMMITTEE</i>

DISTRIBUTED BY	
CLASS REPRESENTATIVES SECTION A	CLASS REPRESENTATIVES SECTION B
UTSA PODDAR	NAYAB ASHRAF KHAN
ABHRAJIT ROY CHOWDHURY	RITTIK MONDAL
	SAMRAT DAS
GOURAB ADHIKARY	ANKAN DAS

PUBLISHED BY	
ARKA KUMAR NAG	NEIL BASU
CHAIR PERSON	GENERAL SECRETARY



Celebrating 50 Years of Excellence

#JCCLCSU 2020

#JCCLCTMC PUNIT 2020

COVID-19 COMMITTEE

#STUDENTS' WELFARE, RELATION & AID FUND SECRETARIAT

#LEGAL AID & AWARENESS SECRETARIAT

#ACADEMIC AFFAIRS SECRETARIAT

This document is available on



Downloaded by Tanmay (tnaskar020@gmail.com)

LAW OF CRIMES

Q. State the powers of the various courts to pass sentences according to the code of criminal Procedure – 1973. What are the provisions in the code for passing sentence of imprisonment in default of fine? Mention the cases in which a person may be convicted of several offences at one trial.

Sentence which may be passed by the Criminal Courts

Supreme Court or High Court.	Any Sentence authorised by law.
Sessions Judge or Additional Session Judge	Any Sentence authorised by law sentence of death is subject to confirmation by High Court
Assistant Sessions Judge.	Imprisonment up to 10 years or/and fine
Chief Judicial Magistrate or Chief Metropolitan Magistrate	Imprisonment upto 7 years or/and fine.
Judicial Magistrate of class-I, Metropolitan or Magistrate.	Imprisonment to 3 years or/and fine upto 10000/-

Judicial Magistrate of class-II Imprisonment up to 1 year fine 5000/-
The Calcutta High Court has held that if a case is registered in a Magistrate's Court, and the person is charged with some offences triable exclusively by a Magistrate and other offences triable exclusively by a Sessions Court, the case cannot be split up, and the entire case should be committed to the Sessions Court. **(The State v. Shyamal, 1983 Cr. L.J. 40)**

Jurisdiction of Courts with respect to Criminal Cases

Introduction

To ensure that justice is served to the one whose right has been infringed, the Constitution of India gave the judiciary system. To ensure that the judiciary is working in an efficient manner, various courts having different powers were established. Code of Criminal Procedure, 1973 (hereinafter referred as CrPC) under Section 6, directs that beside High Courts in every state the following criminal courts will be established:

1. *Courts of Session*
2. *Metropolitan Magistrate in any Metropolitan area*
3. *Judicial Magistrate of the first class in areas other than Metropolitan area*
4. *Executive Magistrate*

Court of Session

Establishment: As per Section 7 of CrPC, every state will have *session division and the number of such division will be decided by State Government after consulting the High Court.* Section 9 of CrPC, states that the *State Government will have to establish a Court of Session for every session's division which shall be presided by a Judge*

and he will be *appointed by the High Court*. Further, the *High Court can also appoint Additional Session Judge and Assistant Session Judge*.

Triable offence: As per Section 26, a Court of Session can try any offence *given under IPC* or any other offence which has *shown to be triable by the Court of Session* in the First Schedule.

Subordination: The *Assistant or Additional Session Judge* appointed by the High Court will be *subordinate to their respective Sessions Judge* who will distribute the work among them. *Session Judge can make rules* with respect to the additional and assistant judges but *they must be consistent with the Code*. [Section 9]

Punishment: A Sessions Judge and Additional Sessions Judge *can pass any sentence that is authorised by law* but, *in case of death sentence confirmation of High Court is required*. An Assistant Sessions Judge can pass any sentence *excluding sentence of death or imprisonment for life or for a term exceeding ten years*. [Section 28]

Court of Metropolitan Magistrate

Establishment: Areas *having population more than one million and notified by the State Government* are *Metropolitan areas*. The area of *Mumbai, Kolkata, Chennai and Ahmedabad* are the areas that are mentioned in the Code as Metropolitan Areas. [Section 8]

As per Section 16, the *State Government after consulting the High Court* will *establish as many courts of Metropolitan Magistrates* as it may deem fit in the Metropolitan Area. The *High Court will appoint the presiding officer* and the *jurisdiction of the officer will extend throughout the metropolitan area*.

Under Section 17, *High Court will appoint a Metropolitan Magistrate as Chief Metropolitan Magistrate (CMM)* for a particular area. *High Court can also appoint any Metropolitan Magistrate as Additional Chief Metropolitan Magistrate*.

Subordination: The CMM and every *Additional CMM* will be *subordinate to the Sessions Judge*. Every other *Metropolitan Magistrate* will be *subordinate to CMM* and the extent of the subordination will be *defined by the High Court*. Further, the CMM *can make rules consistent with the Code* and can also *distribute the work among the Metropolitan Magistrate*. [Section 19]

Triable Cases: As per Section 26, Court of Metropolitan Magistrate can try offence which has *shown to be triable by the Court of Metropolitan Magistrate* in the First Schedule.

Punishment: CMM may *pass any sentence authorised by the law except a sentence of death or of imprisonment for life or a term exceeding seven years* whereas a *Metropolitan Magistrate can pass a sentence for a term not exceeding three years or fine not exceeding five thousand rupees or both*. [Section 29]

Court of Judicial Magistrate

Establishment: As per Section 7, each *division is divided into districts* and the *State Government in every district after consultation with the High Court* will *establish as many Courts of Judicial Magistrates of First Class and Second Class* as it may deem fit. The *presiding officer of such Courts* shall be *appointed by the High Court*. [Section 11]

In every district a *Judicial Magistrate of First Class (JMFC)* will be *appointed as a Chief Judicial Magistrate (CJM)* under Section 12 of CrPC. The *High Court can also appoint any JMFC to be an Additional CJM*.

A *CJM*, subject to the control of High Court, can define the local limit of the areas within which the Magistrates appointed under Section 11 or Section 13 can exercise their powers. [Section 14]

Subordination: As per Section 15, a *CJM* will be subordinate to the Sessions Judge and the other Judicial Magistrate will be subordinate to *CJM*, subject to general control of Sessions Judge. Also, the *CJM* can make rules consistent with this Code and can distribute the work among the Judicial Magistrate subordinate to him.

Triable Cases: As per Section 26, Court of Judicial Magistrate can try offence which has shown to be triable by the Court of Judicial Magistrate in the First Schedule.

Punishment: *CJM* may pass any sentence authorised by law except a sentence of death or of imprisonment for life or a term exceeding seven years whereas a *JMFC* can pass a sentence for a term not exceeding three years or fine not exceeding five thousand rupees or both. Judicial Magistrate of Second Class can pass a sentence of imprisonment wherein the term will not be exceeding one year and in terms of fine, the amount will not exceed one thousand rupees, or of both. [Section 29]

Court of Executive Magistrate

Establishment: Under Section 20, the State Government in every district and in every metropolitan area will appoint as many Executive Magistrates as it thinks fit and shall appoint one of them as District Magistrate (DM). The State Government can also appoint any Executive Magistrate as an Additional District Magistrate (ADM) who will have same power as that of a DM.

The DM subject to the control of State Government will define the local limits in which the Executive Magistrate can exercise their power.

Subordination: Every Executive Magistrate other than ADM will be subordinate to the DM and every Executive Magistrate exercising power in a Sub-division shall also be subordinate to the Sub-Divisional Magistrate, subject to the general control of DM. [Section 23]

Triable Cases: As per Section 3(4)(b), the matters which are administrative or executive in nature will be exercisable by an Executive Magistrate.

Order: The order that can be passed by an Executive Magistrate will be either administrative or executive in nature and hence it will depend on the facts and circumstances of the case.

Power to Award Imprisonment in Default of fine by the Court

Now, where a fine is imposed on an accused, and it is not paid, he can be given a further term of imprisonment in addition to the one already awarded. S. 30 defines the limits of a Magistrate's power to award such imprisonment, and lays down that such imprisonment

(a) Cannot be in excess of the Magistrate's power (as per the above Table); and

(b) Cannot exceed one-fourth of the term which the Magistrate is competent to inflict as punishment for the offence, otherwise than as imprisonment in default of payment of the fine.

Under the Indian Penal Code, if the offence is punishable with the fine only, then for fines of Rs. 50 and under, the default sentence will be upto 2 months; for fines from Rs. 51 to Rs. 100, the default sentence will be upto 4

months; and in other cases, it will be 6 months. To this limitation, the present Code has added one more, viz., that the imprisonment can only extend to one-fourth of the term which the Magistrate is competent to sentence.

Thus, suppose A is convicted of an offence which is punishable under the I.P.C. with imprisonment of either description for 4 years, or fine, or both, and he is sentenced by a First Class Magistrate to undergo imprisonment for a period of three years, and also to pay a fine of Rs. 200. In default of payment of the fine, A can be sentenced to imprisonment for an additional period of 9 months.

Under S. 65 of the I.P.C., in default of payment of the fine, A may be sentenced to a period not exceeding 1 year, i.e., one-fourth of 4 years, the maximum imprisonment provided for the offence. But under the Criminal Procedure Code, the maximum period for which A may be imprisoned for non-payment of fine, cannot, in the present case, exceed 9 months, i.e., one-fourth of 3 years, which is the maximum imprisonment that can be awarded by a First Class Magistrate under the Criminal Procedure Code.

Cases in which a person may be convicted of several offences at one trial

Section 31 of the Code of Criminal Procedure lays down that when a person is convicted at one trial for two or more offences, the court may, subject to the provisions of Section 71 of the **Indian Penal Code**, sentence him, for such offences, to the several punishments prescribed therefore which such court is competent to inflict : such punishment when consisting of imprisonment to commence the one after the expiration of the other in such order as the court may direct, unless it directs that such punishment shall run concurrently, in the case of consecutive sentences it is not necessary to send the offender for trial before a higher court, if the aggregate punishment for the several offences is in excess of the punishment which it is competent to inflict on conviction of a single offence.

The proviso to Section 31, however, lays down that: (a) in no case shall such person be sentenced imprisonment for a longer period than fourteen years; and (b) the aggregate punishment shall not exceed twice the amount of punishment which the Court is competent to inflict for a single offence

The substantive law is, however, laid down in Section 71 of the Indian Penal Code and the rule laid down in Section 31 of the Code of Criminal Procedure as mentioned above is only a procedural law. Section 71 of the Indian Penal Code lays down that: (1) where an offence is made up of parts each of which is an offence, the offender shall not be punished for more than one of such offences; and (2) where an offence falls within two or more separate definitions of offences or where several acts, each of which is an offence, constitute, when combined, a different offence, the offender shall not be punished with more severe punishments than that which could be awarded for any of such offences.

Section 31 of the Code of Criminal Procedure has reference only to the conviction of an accused person of two or more offences at one trial and does not apply to sentences passed at different trials. A court cannot, therefore, direct sentences passed in different trials on an accused for two or more offences to run concurrently.

Such a direction can only be given when the sentences have been passed in one trial. The Court when sentencing an accused to separate sentences for each offence at one trial must also determine whether the sentences are to run concurrently or consecutively otherwise the sentence is defective.

Q. Define the term charge. What are the contents of charge? When Court may alter Charge? What are the cases in which the accused charged with one offences can be convicted of another offence, although he was not charged with it?

The charge is the establishment of the allegation(s) against the accused in a criminal case. The inspiration behind a charge is to inform an accused individual, precisely and succinctly of the issue with which he is charged. It must pass on to him with adequate clearness and certainty, what the prosecution expects to prove against him and which he should protect. The fundamental principle of criminal law is that the accused ought to be informed with certainty and precision the exact nature of the charge leveled against him.

Object: The object is to give the accused notice of the offense he is charged with and does not touch jurisdiction.

Charge – Definition and Meaning

The charge is an accusation. Section 2 (b) of the Cr.P.C which reads as follows:- “ 2. Definitions. – In this Code, unless the context otherwise requires, – (b) charge includes any head of the charge when the charge contains more head than one”. According to Section 2 (b) of Cr.P.C, when a charge contains more than one heads, the head of charges is likewise a charge.

The Legal Provisions: The provisions regarding it are contained in Section 211 to 224 (Chapter XVII), 227, 228, 239, 240 and 464 of the Code of Criminal Procedure.

Nature of charge: It should be precise in its scope and particular in its details.

Contents and Essentials of a Charge: A charge must contain the following contents –

- Offence to be stated – In a charge sheet, the offense must be expressed, so that the accused may shield him.
- Description of Offence by Name – The Charge ought to depict offense by name which is given by that the creates an offense.
- Definition of offense –Where the criminal law does not give any specific name to the offense than a definition/ meaning of the offense must be expressed.
- Law or Section of Law – A charge must contain the law or the section of the law against which the offense is asserted to have been committed.
- Compliance with substantive Requirements of offense – The charge must fulfill the requirements of offense, i.e., which it must not come within the exceptions, or if it comes, then it must be mention in it.
- The language of the Charge – The charge shall be framed in English or the Court’s language or the language understandable by an accused.
- Previous conviction of the accused – Where the accused is liable to enhanced punishment by virtue of his previous conviction and such previous conviction has to be proved; such charge might state the fact, date, and place of the previous conviction.
- Particulars as to time Place and Person – It is necessary that charge ought to contain Time of offense, Place of offense, Person against whom the offense was committed and Thing against whom the offense was committed.

- Particulars of the Manner of the alleged offense – Where the particulars above are not sufficient to give notice of the offense with which the accused is charged, the charge shall likewise contain the particulars of the way in which the alleged offense was committed.
- Thing in Respect of which offense was committed – A charge should express the property in respect of which not is said to have been taken place, for example where an offense is committed under Arms Ordinance, details of the arms recovered from the house of the accused must be stated in the charge.

Impact of a defective charge: The matter has been provided in Sections 215 and 464 of the Code of Criminal Procedure (as amended up to date). The two sections read together to lay down that whatever the anomaly in the framing of a charge; it is not deadly unless there is a bias caused to the accused. If the vital information is conveyed to him and no harm is caused to him because of the charges, the accused cannot prevail by only showing that the charges framed were defective.

Change and Altered / Amendment: Whenever before pronouncement of judgment, the charge can be altered or added. However, it is essential that charge can only be altered on justification by material on record, and that every such alteration or addition ought to be pursued and explained to accused.

Legal provisions regarding alteration of charge by Court and the procedure thereafter under section 216 and 217 of the Code of Criminal Procedure, 1973.

- (1) Any Court may alter or add to any charge at any time before judgment is pronounced.
- (2) Every such alteration or addition shall be read and explained to the accused.
- (3) If the alteration or addition to a charge is such that proceeding immediately with the trial is not, likely, in the opinion of the Court, to prejudice the accused in his defence or the prosecutor in the conduct of the case, the Court may, in its discretion, after such alteration or addition has been made, proceed with the trial as if the altered or added charge had been the original charge.
- (4) If the alteration or addition is such that proceeding immediately with the trial is likely, in the opinion of the Court, to prejudice the accused or the prosecutor as aforesaid, the Court may either direct a new trial or adjourn the trial for such period as may be necessary.
- (5) If the offence stated in the altered or added charge is one for the prosecution of which previous sanction is necessary, the case shall not be proceeded with until such sanction is obtained, unless sanction has already been obtained for a prosecution on the same facts as those on which the altered or added charge is founded.

According to Section 217 of the Code, whenever a charge is altered or added to by the Court after the commencement of the trial, the prosecutor and the accused shall be allowed:

- (a) To re-summon, and examine with reference to such alteration or addition, any witness who may have been examined, unless the Court, for reasons to be recorded in writing, considers that the prosecutor or the accused, as the case may be, desires to recall or re-examine such witness for the purpose of vexation or delay or for defeating the ends of justice.
- (b) Also to call any further witness whom the Court may think to be material.

When a charge is altered, the accused has the right and the Court is bound to recall any witness whom the prosecution or the accused desires to recall. After an alteration or addition of the charge the interest of prosecution and accused has to be safeguarded by permitting them to further examine or cross-examine the witnesses already examined, as the case may be, and by affording them an opportunity to call other witnesses. And the Court is given the discretion to disallow the request of the prosecutor or the accused to recall witnesses on three grounds, namely, (i) vexation, (ii) delay, or (iii) defeating the ends of justice.

Cases in which the accused charged with one offences can be convicted of another offence, although he was not charged with it

In a case falling under the provisions of Sections 236 and 237 of the Criminal Procedure Code, it is permissible for a criminal Court to alter the conviction from an offence which is of lesser gravity to an offence of greater gravity

Section 236 of the Criminal Procedure Code enacts that if an act or series of acts is of such a nature that it is doubtful which of several offences the facts proved will constitute, the accused may be charged with having committed all or any of such offences, or he may be charged in the alternative with having committed some one of those offences.

Section 237 of the CrPC States that 237. If, in the case mentioned in section 236, the accused is charged with one offence, and it appears in evidence that he committed a different offence for which he might have been charged under the provisions of that section, he may be convicted of the offence which he is shown to have committed, although he was not charged with it.

Illustration: A is charged with theft. It appears that he committed the offence of criminal breach of trust, or that of receiving stolen goods. He may be convicted of criminal breach of trust or of receiving stolen goods (as the case may be) though he was not charged with such offence.

Sub-section (1) of Section 238 of the said Code provides that where a person is charged with an offence consisting of several particulars some only of which constitute a complete minor offence, and such combination is proved, but the remaining particulars are not proved, he can be convicted of the minor offence though he was not charged with it. Sub-section (2) thereof further provides that when a person is charged with an offence, and facts are proved which reduce it to a minor offence, he may be convicted of the minor offence, although he is not charged with it.

Q. "For every distinct offence of which any person is accused of there shall be a separate charge and every such charge shall be tried separately" – Explain.

The general law as to the trial of an accused person is embodied in the rule that there should be separate charge for every distinct offence and a separate trial for every such charge. (Section 218) The exceptions to this general rule which are provided in Sections 218 to 221 and 223, Cr.P.C. are as under—

(i) Where the accused person, by an application in writing so desires and the Magistrate is of opinion that such person is not likely to be prejudiced thereby, the Magistrate may try together all or any number of the charges framed against such person. (Proviso to Section 218)

(ii) **Three offences of same kind within a year may be charged together:** If any person is accused of more offences than one of the same kind committed within the space of 12 months from the first to the last of such offence whether in respect of the same person or not, he may be charged with, and tried at one trial for any number of them not exceeding three. (Section 219)

(iii) **Trial for more than one offence:** A person may be charged with and tried at one trial for any number of offences if in one series of acts they are so connected together as to form the same transaction. Thus, if A threatens B, C and D at the same time with injury to their persons with intent to cause alarm to them.

A may be separately charged with and convicted of each of the three offences under Section 506 of the Indian Penal Code, and the separate charges may be tried at the same time. In the same way if A has in his possession several seals knowing them to be counterfeit and intending to sue them for the purpose of committing several forgeries punishable under Section 466, I.P.C. A may be separately charged with, and convicted of, the possession of each seal under Section 473, I.P.C. and the separate charges may be tried at the same time. [Section 220 (1)]

(iv) When a person charged with one or more offences of criminal breach of trust or dishonest misappropriation of property, is accused of committing for the purpose of facilitating or concealing the commission of that offence or

those offences, one or more offences of falsification of accounts, he may be charged with, and tried at one trial for every such offence. [Section 220(2)]

(v) **Offence falling within two definitions:** If the acts alleged constitute an offence falling within two or more separate definitions of any law in force for the time being by which offences are defined or punished, the person accused of them may be charged with and tried at one trial for each of such offences. [Section 220 (3)]. To cite an illustration: A exposes her child with the knowledge that he is thereby likely to cause its death. The child dies in consequence of such exposure. A may be separately charged with and convicted of offences under Sections 317 and 304, I.P.C. at the trial.

(vi) **Acts constituting one offence, but constituting when combined a different offence:** If several acts of which one or more than one would by itself or themselves constitute an offence, constitute when combined a different offence, the person accused of them may be charged with, and tried at one trial for the offence constituted by such acts when combined, and for any offence constituted by anyone, or more, of such acts [Section 220 (4)].

A commits robbery on B, and in doing so voluntarily causes hurt to him. A may be separately charged with and convicted of offences under Sections 323, 392 and 394, I.P.C. at the same trial.

(vii) **Where it is doubtful that offence has been committed:** If a single act or series of acts is of such a nature that it is doubtful which of several offences the facts which can be proved will constitute, the accused may be charged with having committed all or any of such offences, and any number of such charges may be tried at once; or he may be charged in the alternative with having committed someone of the said offences. (Section 221)

(viii) **What persons may be charged jointly:** Section 223 discussed below provides for joinder of charges against more than one accused person in the same trial and may be studied there.

Q. When a complainant may withdraw a complaint? Which procedure will be maintained when the magistrate does not convict the accused? Discuss the power of the Court to convert summons cases into warrant cases.

Withdrawal of Complaint by Complainant

Section 257 of the Code of **Criminal** Procedure provides that if, at any time before a final order is passed under this Chapter, a complainant satisfies the Magistrate that there are sufficient grounds for permitting him to withdraw the complaint against the accused, or any of them (when there are more than one accused), the Magistrate may permit him to withdraw the same, and if he does so, he must thereupon acquit the accused against whom the complaint is withdrawn.

The section of the old Code corresponding to the present S. 257 was worded in such a way that it gave rise to doubts whether the complaint could be withdrawn only against some of the accused in cases in which there were several accused persons. While suggesting amendments to the provisions, the Law Commission observed that the power of withdrawal of a complaint, like that of compounding an offence, should be exercisable as regards each accused separately when there are more than one accused. It is clear that the present code has incorporated this suggestion.

Procedure when not convicted (Section-254): If the magistrate does not convict the accused the magistrate shall proceed to hear the prosecution and accused and take all such evidence as may be produced in support of the prosecution or defence.

If the accused does not admit his guilt, the magistrate is bound to hear the complainant and his witnesses. He cannot acquit the accused without examining the complainant and his witnesses. the application of the prosecution or the accused the magistrate may issue a summons to any witness for his presence.

Power of court to convert summons cases into warrant cases (Section-259): A magistrate may try a summons case as a warrant case in certain circumstances if-

1. the summons case relates to an offence punishable with imprisonment for a term exceeding six months.
2. The magistrate is of the opinion that such trial will be in the interest of justice.

Q. How arrest is made? State the circumstances where the police can arrest a person without warrant. Can a Magistrate and a private person themselves arrest an offender? if so, under what circumstances? Discuss the rights of an arrested person or What are the statutory duties of a police officer to perform after arrest?

MEANING OF ARREST

The term "Arrest" means **apprehension of a person by legal authority so as to cause deprivation of his liberty**. Thus, after arrest, a person's liberty is in control of the arrester. In criminal law, arrest is an important tool for bringing an accused before the court and to prevent him from absconding.

As per Legal Dictionary by Farlex, "Arrest" means ***"a seizure or forcible restraint; an exercise of the power to deprive a person of his or her liberty; the taking or keeping of a person in custody by legal authority, especially, in response to a criminal charge."***

The purpose of an arrest is to bring the arrestee before a court or otherwise to secure the administration of the law. An arrest also serves the function of notifying the community that an individual has been accused of a crime

and also may admonish and deter the arrested individual from committing other crimes. Arrests can be made in both criminal and civil cases, although in civil matters, arrest is a drastic measure which is not looked upon with favor by the courts.

In Indian law, **Criminal Procedural Code 1973** (hereinafter referred to as CrPC), **chapter V (Section 41 to 60)** talks about Arrest of a person but it does not define arrest anywhere.

WHO CAN ARREST?

Arrest can be made by police officer, Magistrate or any private person, like you or me can also arrest a person but that can made only in accordance with the legal provisions mentioned in CrPC. CrPC exempts the members of Armed forces from being arrested for anything done by them in discharge of their official duties except after obtaining the consent of the government (**section 45 CrPC**).

According to **section 43 of CrPC**, Any **private individual** may arrest a person without warrant only when the person is a proclaimed offender under section 82 CrPC and the person commits a non-bailable offence and cognizable offences in his presence; with warrant u/s 72 and 73, under order of a Police officer u/s 37 and under order of a magistrate u/s 37 and 44 Cr. P.C. and also 60 (1) CrPC.

According to **section 44 of CrPC**, Any **Magistrate**, whether Executive or Judicial, may arrest a person when any offence is committed in his presence then he may himself arrest or order any person to arrest the offender and thereafter, subject to the provisions herein contained as to bail, may commit the offender to custody.

A **military officer** may arrest under **section 130 and 131 CrPC**.

Arrest by Police Officer

A police officer may arrest without a warrant under **Sections 41 (1) to 151 CrPC**; under a warrant under **Sections 72 to 74 CrPC**; under the written order of an officer in charge under **Sections 55 and 157**; under the orders of magistrate under **Section 44** and in non cognizable offence under **Section 42 CrPC**. A superior officer may arrest under **Section 36 CrPC**. An Officer-in-Charge of a Police Station may arrest under **Section 42 (2) and 157 CrPC**.

Under **Sections 41, 42, 151 CrPC**, a Police officer may arrest without warrant in the following conditions:

1. Who has been concerned in any cognizable offence or
2. Who has in possession, without, lawful excuse, of any house breaking weapon or
3. Who has been proclaimed as an offender either under CrPC or by order of the State Govt. or
4. Who is in possession of any stolen property or
5. Who obstructs a police officer while in the execution of his duty or who has escaped, or attempts to escape, from lawful custody or
6. Who is reasonably suspected of being a deserter from any of the Armed forces of the Union or
7. Who has been concerned in any law relating to extradition or

8. Who, being a released convict commits a breach of any rule made under sub-section (5) of Section 356 CrPC or
9. For whose arrest any requisition has been received from another police officer specifying the person to be arrested and the offence and other cause for which the arrest is to be made.

As held in the case of **Swami Hariharanand Saraswati vs Jailer I/C Dist. Varanasi, 1954**, the arrested person must be produced before another magistrate within 24 hours, otherwise his detention will be illegal.

In the case of **Joginder Kumar vs State of UP, 1994**, it was held that no arrest can be made merely because it is lawful to do so. There must be a justifiable reason to arrest.

Further, in **State vs Bhera, 1997**, it was held that the “reasonable suspicion” and “credible information” must relate to definite averments which must be considered by the Police Officer himself before he arrests the person.

PROCEDURE OF ARREST

Section 46CrPC describes the way in which an arrest is actually made. As per Section 46(1), unless the person being arrested consents to the submission to custody by words or actions, the arrester shall actually touch or confine the body of the person to be arrested. Since arrest is a restraint on the liberty of the person, it is necessary for the person being arrested to either submit to custody or the arrester must touch and confine his body. Mere oral declaration of arrest by the arrester without getting submission to custody or physical touching to confine the body will not amount to arrest. The submission to custody may be by express words or by action.

It was held in the case of **Bharosa Ramdayal vs Emperor, 1941**, if a person makes a statement to the police accusing himself of committing an offence, he would be considered to have submitted to the custody of the police officer. Similarly, if the accused proceeds towards the police station as directed by the police officer, he has submitted to the custody. In such cases, physical contact is not required.

In case of **Birendra Kumar Rai vs Union of India, 1992**, it was held that arrest need not be by handcuffing the person, and it can also be complete by spoken words if the person submits to custody.

Section 46(2) provides that if any person forcibly resists the endeavor to arrest him, or attempts to evade the arrest, such police officer or other person may use all means necessary to effect the arrest. Thus, if the person tries to runaway, the police officer can take actions to prevent his escape and in doing so, he can use physical force to immobilize the accused. However, as per **Section 46(3)**, there is no right to cause the death of the person who is not accused of an offence punishable with death or with imprisonment for life, while arresting that person. Further, as per **Section 49**, an arrested person must not be subjected to more restraint than is necessary to prevent him from escaping.

Due to concerns of violation of the rights of women, a new provision was inserted in **Section 46(4)** that forbids the arrest of women after sunset and before sunrise, except in exceptional circumstances, in which case the arrest can be done by a woman police officer after making a written report and obtaining a prior permission from the concerned Judicial Magistrate of First class.

In **Kultej Singh vs Circle Inspector of Police, 1992**, it was held that keeping a person in the police station or confining the movement of the person in the precincts of the police station amounts to arrest of the person.

Section 41A deals with cases not covered under Section 41 (1), wherein a police officer is directed to issue a notice and not to make an arrest unless the noticee after receiving notice does not comply with the terms of notice or complies once and then flouts it subsequently. If the notice complies with terms of notice, he may only be arrested for the offence concerned for reasons to be recorded in writing by the police officer.

Section 41B directs the conducts of Police officers while making an arrest. It directs them to ensure that while making an arrest they bear an accurate, clear & visible identification of his name for the purposes of easy identification, prepare an arrest memo attested by either a family member of arrestee or a respectable member of society and countersigned by the arrestee himself. The arrestee is also to be informed of his right to have a relative or a friend of his informed of his arrest, if arrest memo is not attested by his family members.

RIGHTS OF AN ARRESTED PERSON

CrPC gives wide powers to the police for arresting a person. Such powers without appropriate safeguards for the arrested person will be harmful for the society. To ensure that this power is not used arbitrarily, several restraints have been put on it, which, indirectly, can be seen as recognition of the rights of a person being arrested. Further, once arrested, a person is already at a disadvantage because of his lack of freedom and so he cannot take appropriate steps to defend himself. Thus, to meet the needs of “fair trial”, several provisions are given in CrPC, that give specific rights to an arrested person. These rights can be described as follows –

- Right to be informed of the grounds of arrest under **Section 50** of CrPC and **Article 22** of Indian Constitution, it is a fundamental right to be informed. It is the duty of the police officer to inform you and also tell whether the offense is bailable or non-bailable. Normally, Bailable offenses are those where bail can be granted and it is right of the person to be granted bail and Non-bailable offenses are where bail can't be granted generally and it's the discretion of the court. In **Harikishan vs State of Maharashtra 1962**, SC held that the grounds of arrest must be communicated to the person in the language that he understands otherwise it would not amount to sufficient compliance of the constitutional requirement.
- In non-cognizable cases, arrests are made with a warrant and the person going to be arrested has a right to see the warrant under **Section 75** of CrPC. Warrant of arrest should fulfill certain requirements such as it should be in writing such as signed by the presiding officer, should have the seal of the court, Name and address of the accused and offense under which arrest is made. If any of these is missing, the warrant is illegal.
- Under **Section 41**, police have the power to arrest a person without a warrant for a prompt and immediate arrest is needed, no time to approach magistrate and obtain a warrant for example in a case where a serious crime has been perpetrated by a dangerous person or where chances of that person absconding unless immediately arrested. Not in all cases arrest is necessary, Notice of appearance before police officer can be made if reasonable complaint has been made, credible information has been received and suspicion exists of cognizable offence and if concerned person continues to comply with such notice and appears, then arrest is not necessary but if he doesn't, then arrest can be made.
- The police officer must be wearing a clear, visible and clear identification of his name which facilitates easy identification. A memo of arrest must be prepared at the time of arrest – (i) attested by at least one witness, it can be a family member or member of the locality where an arrest is made (ii) countersigned by arrested person.

- Right of arrested person to meet an advocate of his choice during interrogation under **Section 41D** and **Section 303** In **Khatri (II) vs State of Bihar 1981 SCC**, Supreme Court has also held that access to a legal practitioner is implicit in **Article 21**, which gives fundamental right to life and liberty. The state is under constitutional mandate to provide free legal aid to an indigent accused person and this constitutional obligation arises not only when the trial is commenced but also when the person is first produced before a magistrate and also when he is remanded from time to time. In **Suk Das vs Union Territory of Arunachal Pradesh 1986**, SC has held that non-compliance of this requirement or failure to inform the accused of this right would vitiate the trial entailing setting aside of the conviction and sentence. The right of an accused person to consult his lawyer begins from the moment of his arrest. The consultation with the lawyer may be within the presence of a police officer but not within the police officer's hearing. SC also held that it is the duty on all courts and magistrates to inform the indigent person about his right to get free legal aid.
- An arrested person has a right to inform a family member, relative or friend about his arrest under **Section 50** of CrPC.
- An arrested person have right not to be detained for more than 24hrs, without being presented before a magistrate, it is to prevent unlawful and illegal arrests. This right is a fundamental right under **Article 22** of the Indian constitution and under **Sections 57** and **72** of CrPC. In **Khatri (II) vs State of Bihar 1981**, SC has strongly urged upon the State and its police to ensure that this constitutional and legal requirement of bringing an arrested person before a judicial magistrate within 24 hours be scrupulously met. This is a healthy provision that allows magistrates to keep a check on the police investigation. It is necessary that the magistrates should try to enforce this requirement and when they find it disobeyed, they should come heavily upon the police. Further, in **Sharifbai vs Abdul Razak, 1961**, SC held that if a police officer fails to produce an arrested person before a magistrate within 24 hours, he shall be held guilty of wrongful detention.
- An arrested person has the right to be medically examined (**Sections 54,55A**).
- An arrested person has a right to remain silent under **Article 20(3)** of Indian constitution so that police can't extract self – incriminating statement from a person without a will or without his consent.

PROTECTION TO FEMALES

The General rule is that females are not be arrested without the presence of a lady constable and no female be arrested after sun-set but there are exceptions in some cases, where crime is very serious and arrest is important then the arrest can be made with special orders and it depends on facts and circumstances of each case. Separate lock ups to be provided for them. **State of Maharashtra Vs Christian Community Welfare Council of India [(2003) 8 SCC 546]**

CONSEQUENCES OF NON-COMPLIANCE WITH THE PROVISIONS RELATING TO ARREST

In general, non-compliance does not void a trial. Just because any provision relating to arrest was not complied with does not affect the liability of accused. However, the violation will be material in case the accused is prosecuted on the charge of resistance to or escape from lawful custody.

Further, everybody has a right to defend himself against unlawful arrest and a person can exercise this right under Section 96 to 106 of IPC and he will not be liable for any injury caused due to it. Also, a person who is making an illegal arrest is guilty of wrongful confinement and also exposes himself to damages in a civil suit.

If a person who has an authority to arrest, arrests a person with full knowledge that the arrest is illegal, he will be liable to be prosecuted under **Section 220 of IPC**. Similarly, any private person who does not have an authority to arrest, arrests a person with full knowledge that the arrest is illegal, can be prosecuted under **Section 342 of IPC** for wrongful confinement.

A person making illegal arrest also exposes himself to **civil suit for damages** for false imprisonment.

Also, informal detention or restraint of any kind by the police is not authorized by law.

Q. When may search warrant be issued? Explain the procedure of search by a police officer. What step can a Magistrate take for releasing of a Minor girl recovered on the strength of a search warrant?

People's homes and offices are private places and so the law requires any authority who wants to invade that privacy give concrete and legitimate reason to do so.

If the police wish to enter and conduct a search of a private residence or office then, they must first go before a magistrate and give credible reason for it. If the magistrate is convinced that there is validity in the police's presented reasons, a court signed and sealed search warrant is issued by the magistrate.

The authority of a search warrant is very limited and it must detail the name and rank of the particular officer who is allowed to enter the place

When can a Search Warrant be issued under the Criminal Procedure Code?

Section 93 empowers the Court to issue a search warrant in the following three cases:

- (a) Where the Court has reason to believe that the person to whom a summons or order or requisition is addressed will not produce such document or things; or
- (b) Where such document or thing is not known to the Court to be in the possession of any particular person; or
- c) Where the Court considers that the purpose of any inquiry, trial or other proceedings would be served by a general search or inspection.

It will be seen that this section provides for two kinds of searches: clauses (a) and (b) provide for a particular search, whereas clause (c) relates to a general search. The section applies not only when there is a pending inquiry, but also when an inquiry is about to be made.

The **Calcutta High Court** has rightly cautioned that mere suspicion is no ground by itself for the issue of a search warrant. Very great particularity is required by law, even in cases where such warrants are authorised, before the privacy of a man's premises is allowed to be invaded by an officer of the law. (Walvekar, —53 Cal. 718)

Moreover, under clauses (a) and (b), such a search must be for a specific article or thing, and not, for instance, for stolen property generally. (Bissar Misser, —41 Cal. 261) In other words, there cannot be a general fishing inquiry.

Thus, in one case, where a Magistrate issued a search warrant for the search and seizure of all letter-books, letters, bills and books of account in a man's house for the purpose of inquiry as to whether he had used or sold articles with the counterfeit mark, it was held that the issue of such a search warrant was a gross perversion of the law. (Moideen Bros.,—9 LR 45)

However, even if a search warrant is illegal, there is no scope for an argument that, therefore, what is found as a result of that search cannot be put in evidence in a criminal case. Even if the search itself is illegal, the seizure of the incriminating article is not violated. In such cases, a doubt may be cast as to whether the thing which is said to have been found was in fact found in the possession of the accused, but it certainly cannot be said that merely because the search was faulty, the thing itself cannot be used in evidence. (M. I. Mamsa—38 Cr. L.J. 938)

S. 93 is not violative of Art. 20(3) of the Constitution, which provides protection against testimonial compulsion. (M.P. Sharma, —AIR 1954 S.C. 300). This view was once again reiterated by the Supreme Court in V. S. Kuttan Pillai v. Ramakrishnan and Another (1980 Cri. L.J. 106).

Likewise, a search by itself is not a restriction on the right to hold and enjoy property; it is only a temporary interference with the right to hold the premises searched and the article seized. Hence, this provision does not violate Art. 19(1) (f) of the Constitution. (M.P. Sharma,—AIR 1954 S.C. 300)

S. 93 would not apply to a case where a warrant is issued on the complaint of a husband for the production of his wife who has gone away to her father's house with some property of the husband. (Bisu,—11 C.W.N. 836)

Likewise, the breach of a hire-purchase agreement is not a criminal matter at all, and the parties to the agreement have their respective rights which are enforceable in a Civil Court. It was, therefore, held that this section of the Code could not be invoked to obtain possession of a bus, which was a purely civil right. (Hrishikesh,—67 Cr. L.J. 569)

The Supreme Court has also observed that in the case of an issue of a search warrant, the Magistrate must apply his mind and give reasons which reflect application of the mind. (V. S. Kuttan Pillai v. Ramkrishna, (1980) 1 S.C.C. 264)

Remedies:

The following are the three remedies available to an aggrieved person against whom a search warrant has been issued:

- (a) A Writ Petition under Art. 226 of the Constitution would lie for quashing an illegal search warrant and for the return of the seized thing or document.
- (b) An order passed under S. 93 can be set aside under S. 401 of the Code in revision, if it can be shown that the Magistrate had not applied his mind judicially to the requirements of law, and that he had granted the search warrant in an arbitrary fashion.
- (c) A search which is carried out in contravention of law constitutes an actionable trespass, and a suit for damages can be filed against the person executing the illegal warrant.

Procedure of Search

Section 165— Search by police officer : Here the Investigating officer/ or the OC is conducting search when they have reasonable grounds for believing that anything necessary for the purposes of an investigation into any

offence which he is authorised to investigate may be found in any place within the limits of the police station of which he is in charge.

Elements of Section 165:

When can he search? Reasonable Grounds for believing – Section 93(1) gives the grounds under which the search warrant may be issued. The same standard of reasonable doubt exists. Reason suspect is not equal to Reason to believe. Reason to suspect is a better ground.

What can be found? Necessary for the purpose of investigation

Offense authorised to investigate – there are various levels of police officers who have responsibility. The job can be delegated but a junior officer cannot do the job at will. This is also given in Section 165(3)

Limits of Police Station The search can become illegal if the search is not recorded in the Diary.

Procedure for Search: The police officer would come and get two people from the locality called the 'Panchas'. The evidence of these 'panchas' are imp. if something is ceased. There is a document which they sign validating the search and its procedure. This is important otherwise the happening of the search cannot be substantiated.

A search memo needs to be made and submitted to the Magistrate. The Magistrate sends the memo to the owner/ the occupier of the place. This owner and occupier may not be the accused. Therefore, the accused may, at times, not get the memo at all, until the trial.

Section 47 – Search of place entered by person sought to be arrested: This gives duty to the person who or whose premises need to be searched by the person holding the warrant. If the police is not allowed in, they are allowed to break open the door. There is also an allowance for a 'noknock break-in' to take place; this is to take the person by surprise.

A search memo needs to be made and submitted to the Magistrate. The Magistrate sends the memo to the owner/ the occupier of the place. This owner and occupier may not be the accused.. Therefore, the accused may, at times, not get the memo at all, until the trial.

Section 166 – When officer in charge of police station may require another to issue search warrant: A person of another limit may be requested to conduct any search, by the officer who is already conducting a search under Section 165. This has to be in accordance to Section 165. This other police officer must prepare a report and submit it to the original OC, after the search happens.

However, if an immediate search needs to be conducted in another jurisdiction, the officers may do so, but they would need to send a notice and the list of the search to the police station and to the nearest Magistrate.

Section 100 – Persons in charge of closed place to allow search.

A police carrying a warrant should be allowed to conduct a search. If he is not allowed to conduct the search, then force may be used. The force used should however, be reasonable. The search is not only of premises but also of person. If it is a female, a female officer must search, with decency. The search should be made before two respectable people from the locality. If there are no people from the locality, then people from outside the locality may also be taken. These are the 'Panchas'. The panchas need to sign the search document. These people need not necessarily be called as witnesses, infact they can't be called as witnesses.

Section 187 of the IPC states there should be no omission to assist public servant when bound by law to give assistance.

Power to compel restoration of abducted females:

Section 98 applies where there has been abduction or unlawful detention of a woman or a female child under the age of eighteen years for an unlawful purpose. Where the allegation is for unlawful detention but there is no allegation that it was for an unlawful purpose, the section will not be applicable in such a case.

Where the complaint of the husband was that his wife was unlawfully detained by her mother-in-law with a view to get her married to another person it was held that the provisions of Section 98 were applicable in such a case.

But detention by the father of his minor daughter contrary to the wishes of her husband cannot be said to be unlawful unless it was further proved to be against her will, and therefore, the case was not covered by Section 98 of the Code. Thus it is clear that the powers under this section can be exercised only under two conditions, viz., (i) there must be unlawful detention; and (ii) such detention should be for an unlawful purpose.

It may be stated that the present section differs from the earlier Section 97 in two major aspects, namely,

- (1) This section refers to “unlawful detention of a woman or a female child under the age of 18 years for any lawful purpose”, but Section 97 refers to “any person confined wrongfully”; and
- (2) The only order that can be passed under this section is restoration of the female to her liberty or to her lawful guardian. But a warrant for arrest of a female who has wrongfully been confined to someone may be issued under Section 97 of the Code.

Q. Define 'Bail'. Differentiate between bailable and non bailable offences. In what cases bail is to be taken? When bail may be granted in case of non- bailable offence? Distinguish between 'Bail' and 'Anticipatory Bail'. Discuss the special powers of High court regarding bail. When a bond and bail-bond will be declared cancel from the court?

‘Bail’ connotes the process of procuring the release of an accused charged with certain offence by ensuring his future attendance in the court for trial and compelling him to remain within the jurisdiction of the court, ***Nathurasu v. State, 1998 Cri LJ 1762 (Mad)***. The concept of bail has come under the scope of human rights since the UN declaration of Human Rights of 1948.

Categories of Bail : Bailable and Non Bailable Offence

Bailable offence: Section 2(a) of the Code of Criminal Procedure, 1973, Bailable offence means an offence which is shown as bailable in the First Schedule, or which is made bailable by any other law for the time being in force; and “non-bailable offence” means any other offence. It consists of two parts, first relates to offences under Indian Penal code and second one relates to offences under other laws. The second part says that the offence punishable with imprisonment for less than three years or fine only, shall be bailable. Such offences tried by any Magistrate. Bail means the guarantee or sum of money demanded by a law court. It is paid by an arrested person on a criminal charge, temporarily released until which time he is allowed to go free.

EXAMPLES

- Being a member of an unlawful Assembly
- Rioting, armed with deadly weapon
- Public servant disobeying a direction of the law with intent to cause injury to any person.
- Wearing Garb or carrying token used by public servant with fraudulent intents.

These are the cases where grant of bail is a matter of course and right. In view of section 436 Cr. P.C. 1973 a person accused of bailable offence at any time while under detention without a warrant and at any stage of the proceedings has the right to be released on bail, ***Ratilal Bhanji Mithani v. Asstt. Collector of Customs, AIR 1967 SC 1939*** When the offence is bailable and accused is prepared to furnish bail, police officer has no discretion to refuse bail, ***Dharmu Naik v. Rabindranath Acharya 1978 CrLJ 864.***

Non-Bailable Offence: The term 'non-bailable offence' does not mean that an accused person cannot get bail under any circumstances. Section 437 of the Code of Criminal Procedure provides the provisions for bail in nonbailable offences. Except on reasonable grounds that the offence committed by accused is punishable with death or imprisonment for life. As per Section 50(2) of the Code of Criminal Procedure that where a police officer arrests without warrant any person other than a person accused of a non-bailable offence. Person arrested informed that he can get bail and arrange sureties on this behalf.

EXAMPLE

- Murder (S.302) IPC
- Dowry Death (S.304-B) IPC
- Attempt to murder (S.307) IPC
- Voluntary causing grievous hurt. (S.326) IPC
- Kidnapping (S. 363) IPC
- Rape (S. 376) etc.

Following points differentiate Bailable offence from Non-bailable offence :

1. In the case of bailable, its binding upon the investigating officer to grant bail. While in case of a nonbailable offence the police do not grant bail. The decision to grant bail taken by a Judicial Magistrate/Judge only.
2. In the case of a bailable, if the accused produces proper surety after his arrest, and fulfills other conditions, its binding upon the Investigating officer to release him. While in the case of a non-bailable offence, the Investigating Officer must present the accused before the Judicial Magistrate/Judge concerned within 24 hours of the arrest. At that time, the accused has a right to apply for bail himself or through his representative /lawyer.
3. Punishment for bailable offence is smaller than the punishment for non-bailable offence. Generally imprisonment less than 3 years or fine or both. where as Punishment for non-bailable offences is severe

than the punishment for bailable offences. Generally imprisonment more than three years and fine, even death or life imprisonment.

4. Anticipatory bail is not necessary and applicable on the other hand Anticipatory bail can be granted in the non- bailable offences only by the Court of Session or by the High Court.

Considerations by the Court while granting bail:

The provisions of CrPC regarding bail confer discretionary powers on the courts to grant bail to accused pending trial, since the jurisdiction is discretionary; it has to be exercised with great care and caution. The court is required to record in writing its reasons or special reasons for releasing a person on bail. The Supreme Court in various cases has laid down guidelines for the lower courts for exercising their discretion while granting bail.

In *Kalyan Chandra Sarkar v. Rajesh Ranjan @ Pappu Yadav and Anr. (2004 (7) SCC 528)* in para 11 it was observed that "The court granting bail should exercise its discretion in a judicious manner and not as a matter of course. Though at the stage of granting bail a detailed examination of evidence and elaborate documentation of the merit of the case need not be undertaken, there is a need to indicate in such orders reasons for prima facie concluding why bail was being granted particularly where the accused is charged of having committed a serious offence. Any order devoid of such reasons would suffer from non-application of mind. It is also necessary for the court granting bail to consider among other circumstances, the following factors also before granting bail; they are:

- (a) The nature of accusation and the severity of punishment in case of conviction and the nature of supporting evidence.
- (b) Reasonable apprehension of tampering with the witness or apprehension of threat to the complainant.
- (c) Prima facie satisfaction of the court in support of the charge.

Other factors to be considered by the court while granting bail are:

- Whether the accused is likely to flee.
- The fact of the accused being caught red-handed.
- The fact of the accused being a repeat offender.
- Whether the accused is willing to comply with the conditions imposed by the court.
- The likely punishment to be imposed on the accused if punished.
- The strength of the evidence against the accused.
- The fact of previous commission of the offence by the accused during bail.
- The period of imprisonment already undergone by the accused during the pendency of the trial.

Bail to under trials

The issue of bail to under trial prisoners has been in debate because of the increasing under trial population in the jails approximating around 64.7% of the total prison population. The National Human Rights Commission has

repeatedly given detailed guidelines regarding the release of under trials on bail. The personal liberty of a person can be deprived only when he is proved guilty otherwise it would be violation of his human rights. In **Mantoo Majumdar v. State of Bihar** the Supreme Court upheld the undertrials' right to personal liberty and ordered the release of the petitioners on their own bond and without sureties as they had already spent six years awaiting their trial in prison. The Central Government and various State governments have requested the High Courts to release the under trials who are entitled to bail. Advocate Vijay Aggarwal had filed a petition asking the court to formulate a policy for the release of prisoners charged with offences carrying maximum punishment of 7 years of imprisonment. The petition demanded the release after one year imprisonment of the under trial. But the move was opposed by the Government which was against formulation of a general policy and demanded that the cases be dealt with based on their particular factual situation.

Section 167(2) Cr.P.C. requires the investigating agency to complete the job of investigation and file the chargesheet within the time limit of either 60 or 90 days as the case may be on failure of which the accused would be entitled to be released on bail. But the current situation shows the disregard of the above condition laid down in the code.

Differences between Bail and Anticipatory Bail

- (1) Provisions relating to bail are contained in Sections 436 and 437, Cr. P.C. whereas Section 438 deals with anticipatory bail.
- (2) The provisions relating to bail were contained in the old Code of Criminal Procedure, 1898 also but there was no provision for grant of anticipatory bail in the old Cr. P. C. Therefore it is relatively a new concept incorporated in the Code of Criminal Procedure, 1973.
- (3) Bail may be granted to the accused by any Judicial Magistrate or Court but anticipatory bail may be granted only by the High Court or Sessions Court.
- (4) Bail is a post arrest legal process, that is, it is granted only after arrest of the person whereas anticipatory bail is a pre-arrest legal process in anticipation of possibility of arrest of a person.
- (5) Bail is ordinarily granted as a matter of right in case of bailable offence and it may also be granted in nonbailable offences under Section 437, Cr. P. C. but power to grant anticipatory bail is of an extra-ordinary character which is to be used by the Court sparingly.

Special powers of High court regarding bail

Section 439 of the Code of Criminal Procedure confers special powers on High Courts and Sessions Courts to direct

- (a) That any person accused of any offence and in custody be released on bail; and
- (b) That any condition imposed by a Magistrate when releasing any person on bail be set aside or modified.

However, in the case of a person who is accused of an offence,-

- (i) Which is triable exclusively by a Trial Court, or
- (ii) Which though not so triable, is punishable with life imprisonment, the High Court or the Sessions Court must, before granting bail, give notice of the bail-application to the Public Prosecutor, unless the Court is of the opinion, for reasons to be recorded by it, that it is not practicable to give such notice.

Although there was no express provision in the old Code authorising a High Court to cancel a bail even in the case of a bailable offence, the existence of this power was recognised by the Supreme Court in Talib's case (A.I.R. 1958 S.C. 376), where the absence of an express provision to this effect was described as a "lacuna". Therefore, S. 439 now expressly provides that a High Court or a Sessions Court may direct that any person who has been released on bail under this Chapter be arrested and committed to custody.

It will be seen that no fetter is put on the powers of the Sessions Court to cancel the bail order by S. 439. It is not necessary that some new events should take place subsequent to the offender's release on bail for the Sessions Judge to cancel his bail. Thus, it has been held that bail obtained by hoodwinking the Magistrate ought to be cancelled. In fact, refusal to cancel bail in such a case would amount to a failure to exercise jurisdiction. (Hirasingh,—1977 Cr. L.J. 104)

In Sanjay Gandhi's case, the Supreme Court, whilst cancelling the anticipatory bail of the accused for abusing his liberty by attempting to suborn prosecution witnesses, observed that the Court's power of cancelling bail has to be exercised with care and circumspection. However, this extraordinary power should be exercised when it is clear that the accused is interfering with the course of justice by tampering with the witnesses.

Considering the Scope of S. 439, the Supreme Court has observed that the Court should be satisfied only about a prima facie case, and need not go into the merits of the matter. When the accused are policemen, the Court should also keep in mind the possibility of intimidation of witnesses and tampering with the documents by such accused persons. (*Niranjan Singh v. Prabhakar Rajaram Kharote*, (1980) 2 S.C.C. 559).

Cancellation of bond and bail-bond by court

9 Important grounds under which a bail may be cancelled are mentioned below:

As per Section 439(2) of the Code of Criminal Procedure, a High Court or Court of Session may direct that any person who has been released on bail under Chapter XXXIII (i.e., relating to bail) be arrested and commit him to custody.

A person admitted to bail by the High Court could be committed to custody only by the High Court. Similarly, a High Court has power to stay bail order passed by Session Courts, if it thinks appropriate to do so.

A Court of Session can cancel the bail granted by itself and cannot cancel a bail granted by the High Court unless new circumstances arise during the progress of the trial after an accused person has been admitted to bail by the High Court.

If a Court of Session had admitted an accused to bail, the State may either move the Sessions Judge if certain new circumstances have arisen which were not earlier known to the State; or the State may approach the High Court being the Supreme Court under Section 439(2) to commit the accused to custody.

Section 437(5) confers on the High Court the power to cause any person who has been released under Section 437 to be arrested and commit him to custody. Section 439(2) of the Code empowers the High Court to cause any person who has been admitted to bail under Section 439(1) of the Code to be arrested and commit him to custody. The Supreme Court has also power to cancel bail allowed by the High Court if there is a wrong exercise of discretion by the High Court.

Cancellation of bail can be ordered only on stronger grounds, namely, a bail order having been procured on misrepresentation of facts, bench selection, on inadequate improper exercise of discretion by the judges or on the proof of the accused interfering with investigation or trial.

Suspension of sentence may mean conviction postponed or kept in abeyance during pendency of appeal Section 389 of the Code deals with suspension of execution of sentence pending the appeal and release of the appellant on bail.

There is distinction between bail and suspension of sentence. One of the essential ingredients of Section 389 is the requirement for the Appellate Court to record reasons in writing for ordering suspension of execution of the sentence or order appealed against.

If he is in confinement, the said court can direct that he be released on bail, or on his own bond. The requirement of recording reasons in writing clearly indicates that there has to be careful consideration of the relevant aspects and the order directing suspension of sentence and grant of bail should not be passed as a matter of routine.

Bail may be cancelled on the following grounds as per the verdicts of different Courts:

- (1) When the person on bail is found tampering with the evidence either during the investigation or during the trial.
- (2) When the person on bail commits similar offence or any heinous offence during the period of bail.
- (3) When the person on bail has absconded and trial of the case gets delayed on that account.
- (4) When it is alleged that the person on bail is terrorizing the witness and committing acts of violence against the police.
- (5) When the person on bail creates serious law and order problems in the society and he had become a hazard on the peaceful living of the people.
- (6) When it is found that the subsequent events make out a non-bailable offence or a graver offence.
- (7) When the High Court found that there was a wrong exercise of judicial discretion to grant the accused bail.
- (8) When the circumstances were proved that the accused has misused the liberty granted to him, it is sufficient ground to cancel bail.
- (9) If the life of the accused person on bails itself be in danger.

The anticipatory bail can also be cancelled before the regular bail is actually granted.

Q. When can a court grant anticipatory bail? Enumerate the principle granting anticipatory bail? What are the condition to be imposed at the time of granting such bail? Can it be granted for a limited period?

Section 438 of the Code of Criminal Procedure, 1973 deals with the provisions regarding the Anticipatory Bail. The words “anticipatory bail” have not been defined in the code. The expression “anticipatory bail” is a misnomer and the order becomes operative only on arrest.

Section 438 of the Code reads as under:-

“Direction for grant of bail to person apprehending arrest”

Where any person has reason to believe that he may be arrested on accusation of having committed a nonbailable offence, he may apply to the High Court or the Court of Session for a direction under this section that in the event of such arrest he shall be released on bail; and that Court may, after taking into consideration, inter-alia, the following factors, namely-

- The nature and gravity of the accusation;
- The antecedents of the applicant including the fact as to whether he has previously undergone imprisonment on conviction by a Court in respect of any cognizable offence;
- The possibility of the applicant to flee from justice; and.
- Where the accusation has been made with the object of injuring or humiliating the applicant by having him so arrested, Either reject the application forthwith or issue an interim order for the grant of anticipatory bail:

Provided that, where the High Court or, as the case may be, the Court of Session, has not passed any interim order under this Sub-Section or has rejected the application for grant of anticipatory bail, it shall be open to an officer incharge of a police station to arrest, without warrant the applicant on the basis of the accusation apprehended in such application.

The Supreme Court in **‘Bhardresh Bibinbhai Sheth V. State of Gujarat and other’ – 2016 (2) TMI 416** - the Supreme Court laid down the principles for grant of anticipatory bail as detailed below:

1. The complaint filed against the accused needs to be thoroughly examined, including the aspect whether the complainant has filed a false or frivolous complaint on earlier occasion. The court should also examine the fact where there is family dispute between the accused and the complainant and the complainant must be clearly told that if the complaint is found to be false or frivolous, then strict action will be taken against him in accordance with law. If the connivance between the complainant and the investigating officer is established then action be taken against the investigating officer in accordance with law;
2. The gravity of charge and the exact role of the accused must be properly comprehended. Before arrest, the arresting Officer must record the valid reasons which have led to the arrest of the accused in the case diary. In exceptional cases, the reasons could be recorded immediately after the arrest, so that while dealing with the bail application, the remarks and observations of the arresting officer can also be properly evaluated by the Court;
3. It is imperative for the courts to carefully and with meticulous precision evaluate the facts of the case. The discretion to grant bail must be exercised on the basis of available material and the facts of the particular case. In cases where the court is of the considered view that the accused has joined the investigation and he is fully co-operating the investigating agency and is not likely to abscond, in that event, custodial interrogation should be avoided. A great ignominy, humiliation and disgrace is attached to arrest. Arrest leads to many serious consequences not only for the accused but for the entire family and at times for the entire community. Most people do not make any distinction between arrest at a preconviction stage or post-conviction stage;
4. There is no justification for reading into Section 438 of CrPC the limitations mentioned in Section 437 CrPC. The plenitude of Section 438 must be given its full play. There is no requirement that the accused must make

out a special case for the exercise of the power to grant anticipatory bail. This virtually reduces the salutary power conferred by Section 438 CrPC to a dead letter. A person seeking anticipatory bail is still a free man entitled to the presumption of innocence. He is willing to submit to restraints and conditions on his freedom, by the acceptance of conditions which the court may deem fit to impose, in consideration of the assurance that if arrested, he shall be enlarged on bail;

5. The power of course of action on an application for anticipatory bail ought to be that after evaluating the averments and the accusations available on the record if the court is inclined to grant anticipatory bail then an interim bail be granted and notice be issued to the Public Prosecutor. After hearing the Public Prosecutor, the court may either reject the anticipatory bail application or confirm the initial order of granting bail. The Public Prosecutor or the complainant would be at liberty to move the same court for cancellation or modifying the conditions of anticipatory bail at any time if liberty granted by the court is misused. The anticipatory bail granted by the court should ordinarily be continued till the trial of the case;
6. It is settled legal position that the court which grants the bail also has the power to cancel it. The discretion of grant or cancellation of bail can be exercised either at the instance of the accused, the Public Prosecutor or by the complainant, on finding new material or circumstances at any point of time;
7. In pursuance of the order of the Court of Session or the High Court, once the accused is released on anticipatory bail by the trial court, then it would be unreasonable to compel the accused to surrender before the trial court and again apply for regular bail; Discretion vested in the court in all matters should be exercised with care and circumspection depending upon the facts and circumstances justifying its exercise. Similarly the discretion vested with the Court under Section 438 Cr.PC should also be exercised with caution and prudence. It is unnecessary to travel beyond it and subject the wide power and discretion conferred by the legislature to a rigorous code of self imposed limitations;
8. No inflexible guidelines or straitjacket formula can be provided for grant or refusal of the anticipatory bail because all circumstances and situations of future cannot be clearly visualized for the grant or refusal of anticipatory bail. In consonance with legislative intention, the grant or refusal of anticipatory bail should necessarily depend on the facts and circumstances of the case;

Condition to be imposed at the time of granting anticipatory bail

The High Court or a Court of Session exercise their discretion upon examination of the facts and circumstances to grant anticipatory bail "if it thinks fit" since denial of bail amounts to deprivation of personal liberty, **they lean against the imposition of unnecessary restrictions on the scope of Section 438**, especially when no such restrictions have been imposed by the legislature in the terms of that section. An over- generous infusion of constraints and conditions which are not to be found in Section 438 can make its provisions constitutionally vulnerable since the right to personal freedom cannot be made to depend on compliance with unreasonable restrictions. The beneficent provision contained in Section 438 must be saved, not jettisoned, ***Ravindra Saxena V State of Rajasthan (2010) 1 SCC 684;***. But, while granting such anticipatory bail, the Court may impose such conditions as it thinks fit, but the object of putting conditions should be to avoid the possibility of the person hampering investigation, ***M. Sreenivasulu Reddy vs State Of Tamil Nadu JT 2005 (51) SC 585***. Harsh, onerous and excessive conditions which frustrate the very object of anticipatory bail cannot to be imposed. Subjecting an accused to any condition other than conditions mentioned in the Section is beyond the jurisdiction of the court, ***Munish Bhasin V NCT of Delhi; AIR 2009 SC 2072***.

Filing of F.I.R is not a condition precedent to the exercise of the power under Section 438 and the imminence of a likely arrest founded on a reasonable belief can be shown to exist even if an F.I.R. is not yet filed. Anticipatory bail can be granted even after an F.I.R. is filed, so long as the applicant has not been arrested. The provision cannot be invoked after the arrest of an accused, ***Gurbaksh Sibbia V State of Punjab 1980 AIR 1632***. Moreover the salutary

provision contained in Section 438 Cr.P.C. were introduced to enable the Court to prevent the deprivation of personal liberty. It cannot be permitted to be jettisoned on technicalities such as “the challan having been presented anticipatory bail cannot be granted”

DURATION OF ORDERS

A Single Judge of Supreme Court in regard to length of the time for which the order of anticipatory bails stay operative, in the case of *KL Verma v State* held that: *‘Anticipatory bail granted in anticipation of arrest in nonbailable cases, does not mean that the regular court, which is to try the offender, is sought to be bypassed. That is the correct procedure to follow because it must be realized that the Court of Sessions or the High Court is grants anticipatory bail at a stage when the investigation is incomplete and, therefore, it is not informed about the nature of evidence against the alleged offender. Therefore it was necessary that such anticipatory bail orders should be of a limited duration only and ordinarily on the expiry of that duration or extended duration the court granting anticipatory bail should leave it to the regular court to deal with the matter on an appreciation of evidence placed before it after the investigation has made progress or the charge-sheet is submitted, KL Verma v Sate (1988) 9 SCC 348.*

By this, the Court desired to convey that an order of anticipatory bail does not ensure till the end of trial but it must be of limited duration as the regular court cannot be bypassed. The limited duration must be determined having regard to the facts of the case and the need to give the accused sufficient time to move the regular court for bail and to give the regular court sufficient time to determine the bail application. In other words, till the bail application is disposed of one way or the other the court may allow the accused to remain on anticipatory bail. To put it differently, anticipatory bail may be granted for a duration which may extend to the date on which the bail application is disposed of or even a few days thereafter to enable the accused persons to move the higher court, if they so desire

The dictum laid in K.L. Verma’s case was upheld in the case of *Salauddin Abdulsamad Shaikh v The State Of Maharashtra, 1996 Cr LJ 1368* and *Sunita Devi V State of Bihar, 2005 SCC (Cri) 435* and it was held that the Anticipatory bail orders should be of a limited duration only and ordinarily on the expiry of that duration or extended duration’ the Court granting anticipatory bail should leave it to the regular Court to deal with the matter on an appreciation of evidence placed before it after the investigation has made progress or the charge-sheet is submitted. Though it was not necessary that the operation of an order passed under Section 438(1) of the Code be limited in point of time but the Courts could, if there were reasons for doing so, limit the operation of the order to a short period, until after the filing of FIR in respect of the matter covered by the order. The applicant, in such cases were required to obtain an order of bail under Section 437 or 439 of the Code within a reasonable short period after the filing of the FIR.

In another case it was reiterated that the provisions of Section 438 Cr.P.C. cannot also be invoked to exempt the accused from surrendering to the Court after the investigation is complete and if charge-sheet is filed against him. Such an interpretation amounted to violence to the provisions of Section 438 Cr.P.C., since even though a chargesheet may be filed against an accused and charge is framed against him, he may still not appear before the Court at all even during the trial. Section 438 Cr.P.C. contemplates arrest at the stage of investigation and provides a mechanism for an accused to be released on bail should he be arrested during the period of investigation. Once the investigation makes out a case against him and he is included as an accused in the charge- sheet, the accused has to surrender to the custody of the Court and pray for regular bail. On the strength of an order granting Anticipatory Bail, an accused against whom charge has been framed, cannot avoid appearing before the trial court. *HDFC Bank V J.J. Mannan 2010(1) SCC 679*

Sec 438 does not mention anything about the duration to which a direction for release on bail in the event of arrest can be granted. The order granting anticipatory bail is a direction specifically to release the accused on bail in the event of his arrest. Once such a direction of anticipatory bail is executed by the accused and he is released on bail, the concerned court would be fully justified in imposing conditions including direction of joining investigation. In pursuance to the order of the Court of Sessions or the High Court, once the accused is released on bail by the trial court, then it would be unreasonable to compel the accused to surrender before the trial court and again apply for regular bail. The Supreme Court declared the law laid down in the cases of K.L. Verma v State, Salauddin Abdulsamad Shaikh v The State Of Maharashtra and Sunita Devi V State of Bihar as per incurium and held that: *"The validity of the restrictions that the accused released on anticipatory bail must submit himself to custody and only thereafter can apply for regular bail is contrary to the basic intention and spirit of section 438 Cr.P.C. It is also contrary to Article 21 of the Constitution. The test of fairness and reasonableness is implicit under Article 21 of the Constitution of India. Directing the accused to surrender to custody after the limited period amounts to deprivation of his personal liberty. It is unreasonable to lay down strict, inflexible and rigid rules for exercise of such discretion by limiting the period of which an order under this section could be granted. Once the anticipatory bail is granted then the protection should ordinarily be available till the end of the trial unless the interim protection by way of the grant of anticipatory bail is curtailed when the anticipatory bail granted by the court is cancelled by the court on finding fresh material or circumstances or on the ground of abuse of the indulgence by the accused.*

In view of the clear declaration of law laid down by the Constitution Bench in Sibbia's case it would not be proper to limit the life of anticipatory bail. When the court observed that the anticipatory bail is for limited duration and thereafter the accused should apply to the regular court for bail that means the life of section 438 Cr.P.C. would come to an end after that limited duration. This limitation has not been envisaged by the legislature. The Constitution Bench in Sibbia's case clearly observed that it is not necessary to re-write section 438 Cr.P.C. Therefore, in view of the clear declaration of the law by the Constitution Bench, the life of the order under section 438 Cr.P.C. granting bail cannot be curtailed." **Siddharam Satlingappa Mhetre v State of Maharashtra (2011) 1 SCC 694**

Q. Who can disperse an unlawful assembly? Can armed forces be used to disperse an unlawful assembly?

The maintenance of Public Order and to ensure tranquility in the public discourse is the primary objective of any government. For a country to grow, develop and reach new heights of good governance, it is of utmost importance that its government should be able to give its citizens a peaceful and egalitarian environment. In a situation of failure to provide the above, the consequences can be dire and unpleasant.

When the administrative machinery of a country will be unable to maintain the public order in its civil society then it society may eventually be subjected to a situation of chaos and panic and ultimately would be detrimental for the functioning of the administrative machinery in the state as well as will pose a threat to the lives of the citizens who want to live peacefully.

In order to maintain the public order and tranquility among the people of the society, the lawmakers of our country have taken commendable steps. The legal provisions pertaining to public order and tranquility have been primarily enshrined in the Code of Criminal Procedure, 1973. Though, various laws in regards to this matter have been also formulated subsequently.

The Chapter 10 of the Code of Criminal Procedure, 1973 bearing the title 'Maintenance of Public Order and Tranquility' deals with several provisions which represent the mechanism of the procedure. This chapter encompasses a total of 21 sections which deal with the procedural steps taken in the maintenance of public order

and tranquility. The sections given below discuss the procedural steps to be taken in the case of unlawful assembly.

Section 129 – Dispersal of assembly by use of civil force

1. Any Executive Magistrate or officer in charge of a police station or, in the absence of such officer in charge, any police officer, not below the rank of a sub-inspector, may command any unlawful assembly, or any assembly of five or more persons likely to cause a disturbance of the public peace, to disperse; and it shall thereupon be the duty of the members of such assembly to disperse accordingly.
2. If, upon being so commanded, any such assembly does not disperse, or if, without being so commanded, it conducts itself in such a manner as to show a determination, not to disperse, any Executive Magistrate or police officer referred to in Sub-Section (1), may proceed to disperse such assembly by force, and may require the assistance of any make person, not being an officer or member of the armed forces and acting as such, for the purpose of dispersing such assembly, and, if necessary, arresting and confining the persons who form part of it, in order to disperse such assembly or that they may be punished according to law.

Section 129 gives power to any executive magistrate or officer in charge of station if absent any police officer not below the rank of sub-inspector to command disperse of any unlawful assembly and such command to be obeyed by the members of such of unlawful assembly and in case of disobeyed and if necessary can take an action by confining or arresting such persons.

Section 130 – Use of armed forces to disperse assembly

1. If any such assembly cannot be otherwise dispersed, and if it is necessary for the public security that it should be dispersed, the Executive Magistrate of the highest rank, who is present may cause it to be dispersed by the armed forces.
2. Such Magistrate may require any officer in command of any group of persons belonging to the armed forces to disperse the assembly with the help of the armed forces under his command, and to arrest and confine such persons forming part of it as the Magistrate may direct, or as it may be necessary to arrest and confine in order to disperse the assembly or to have them punished according to law.
3. Every such officer of the armed forces shall obey such requisition in such manner as he thinks fit, but in so doing he shall use as little force, and do as little injury to person and property, as may be consistent with dispersing the assembly and arresting and detaining such persons.

Section 130 gives powers to such magistrate or police officer to call for armed forces help if required and command them to disperse the unlawful assembly and which obeying such requisition the armed forces shall use little force and cause little injury to the person and property for dispersing the unlawful assembly.

Section 131 – Power of certain armed force officers to disperse assembly

When the public security is manifestly endangered by any such assembly and no Executive Magistrate can be communicated with, any commissioned or gazette officer of the armed forces may disperse such assembly with the help of the armed forces under his command, and may arrest and confine any persons forming part of it, in order to disperse such assembly or that they may be punished according to law, but if, while he is acting under this

section, it becomes practicable for him to communicate with an Executive Magistrate, he shall do so, and shall thenceforward obey the instructions of the Magistrate, as to whether he shall or shall not continue such action.

This section specifically gives powers to the commissioned or gazette officer of armed forces if they are unable to communicate to the magistrate then under his command to arrest or confine any such member of unlawful assembly and in the cases of doing such act while it becomes possible to communicate an executive magistrate, he shall do so and act according to the instructions of the magistrate whether to continue such action or not.

Use of force to disperse unlawful assemblies

The use of force to disperse an unlawful assembly would be dictated by the circumstances existing and can range from a simple arrest to the use of firearms. Force, however, should be used with the limited objective of restoring order, preventing crime and arresting offenders.

Though the quantum of force to be used in the dispersal of unlawful assemblies has not been defined in any law, the practice and rules that have evolved have followed the following principles:

- No more force should be used than is necessary;
- It should not be used as a punitive measure;
- It must cease immediately the object is gained.

Q. Discuss the detail in the procedure of trial before the Court of Session. Which types of offences are tried before it?

Trial Before Court of Sessions: The trial before the Sessions Court must proceed and be dealt with continuously from its inception to its finish. Sessions case must not be tried piecemeal. Once the trial commences, the Sessions Judge must, except for a very pressing reason which makes an adjournment inevitable, proceed de die in diem until the trial is concluded. (*Bhagirath v State of M.P., AIR 1976 SC 975*)

Trial to be conducted by public prosecutor (Section-225): In every trial before a court of session, the prosecution shall be conducted by a public prosecutor.

Opening case for prosecution (Section-226): When an accused appears or is brought before the court in pursuance of a committal of the case under section-209, the P.P. should give a brief summary of the evidence and the particulars of the witnesses by which he proposes to prove the case against the accused person.

It is the duty of trial court to secure the attendance of the accused. It cannot acquit the accused on the ground that the prosecution failed to bring the accused. [*State of Gujarat v Nareshbhai Haribhai Tande, 1997 Cri LJ 2783 (Guj HC)*]

Discharge of Accused (Section-227): After considering the record of the case, and after hearing the submission of the parties, if the court considers that there is no sufficient ground for proceeding against the accused, it shall discharge him and record its reasons for so doing.

At the initial stage of the trial, the truth, veracity and effect of the evidence which the prosecutor proposes to adduce are not to be meticulously judged. The court is only to see whether the material on record is such on which a conviction can be said to be reasonably possible. (*State of Bihar v Ramesh Singh, AIR 1997 SC 2018*)

Framing of charge (Section-228): After considering the record of the case, and hearing the parties, if the judge is of opinion that there is a ground for presuming that the accused has committed an offence which.

a) is not exclusively triable by court of sessions, he may frame a charge against the accused, and transfer the case to the CJM, who shall then try the offence in accordance with the procedure for the trial of warrant case instituted on a police report.

b) is exclusively triable by the court, he shall frame in writing a charge against the accused. The charge shall be read and explained and be asked whether the accused pleads guilty of the offence charged or claims to be tried.

Once the case is committed to the sessions court it becomes clothed with the jurisdiction to try it and the mere fact that the offence disclosed was not exclusively triable by court of sessions does not divest it of that jurisdiction. (*Sammun v State of M.P., 1988 Cr LJ 498*)

When an offence is not triable exclusively by sessions court, it is not mandatory that it should order transfer of case to CJM. Thus, when a case is exclusively triable by it and the counter case is not, the sessions court could try both cases. [*Sudhir v State of M.P., 2001, Cr LJ 1072 (SC)*]

Conviction on plea of guilty (229): If the accused pleads guilty, the judge shall record the plea and in his discretion may convict him.

The plea of guilty only amounts to an admission that the accused committed the acts alleged against him and must plead by his own mouth and not through his counselor pleader.

The court has a discretion either to convict the accused or to proceed with the trial, so this discretion is to be exercised properly, specially in a case when some plead guilty and the others claim to be tried.

Date for prosecution evidence (Section-230): If the accused refuses to plead, or does not plead, or claims to be tried or is not convicted, the judge shall fix a date for the examination of witnesses. On the application of the prosecution the judge may issue any process for compelling the attendance of any witness or the production of any document or other things.

If the prosecution fails to produce witnesses, on a direction by the court, the court must issue a warrant to compel the attendance of such witnesses because production of witnesses is the responsibility of the court. (*State of Mysore v Ramu, 1973 Cr LJ 1257*)

Evidence for prosecution (Section-231): On the date fixed for evidence, the judge shall proceed to take all such evidence as may be produced in support of the prosecution and may permit the cross examination of any witness to be deferred until any other witness has been examined or recall any witness for further cross-examination.

The prosecution is generally not bound to produce every witness but it must examine all the eye-witnesses when some of them are interested and require corroboration. (*Bir Singh v State of U.P., AIR 1978 SC 59*)

Acquittal of accused (Section-232): After (a) taking the evidence of the prosecution (b) examining the accused (c) hearing the prosecution and defence on the point, if the judge considers that there is no evidence that the accused had committed the offence, the judge, shall record an order of acquittal.

Evidence for the defence (Section-233): When the accused is not acquitted the court calls upon him to enter on his defence and adduce any evidence in support of his defence. Any written statement put by the accused must be filed with the record.

On request by accused for issue of process to compel attendance of witnesses or production of documents, the judge shall issue such process unless he considers the request to be vexatious or made for the purpose of delay or defeating the ends of justice.

The court cannot direct or require accused to pay expenses of witnesses sought to be examined by him in his defence. **[Mahe Aalam v State of U.P., 2005 Cr LJ 4554 (All)]**

Arguments (Section-234): When the examination of the defence witnesses is complete, the prosecutor sums up his case, and the accused or his pleader shall be entitled to reply. Where any law point is raised by the defence the prosecution may be allowed to make his submission with regard to such point of law.

Judgment (Section-235): After hearing the arguments and points of law (if any) the judge shall give a judgement in the case.

Procedure in case of previous conviction (Section-236): In a case where a previous conviction is charged under section-211 (7), and the accused denied to be previously convicted, as alleged in the charge, the judge may, after convicting the accused, take evidence in respect of the alleged previous conviction necessary to prevent the accused from being prejudiced at the trial.

Triable Offences by Sessions Court: As per Section 26, a Court of Session can try any offence *given under IPC* or any other offence which has *shown to be triable by the Court of Session* in the First Schedule.

Q. What cases are tried under 'Summary Trial'. What is the procedure of summary trial Can a magistrate impose sentence of imprisonment for six months in summary trial?

Summary trial is an abridged form of regular trial and is a short-cut in procedure. Considering the risks involved in such short-cuts, it was considered necessary that only senior and experienced judicial officers should be empowered to try certain petty cases summarily. A summary trial implies speedy disposal and all cases should be tried by the summons procedure, whether the case is summons case or warrant case. No formal charge is framed.

Power to try summarily (Section-260 to 261): Notwithstanding anything contained in this code', any CJM, Metropolitan Magistrate or any first class magistrate specially empowered by the High Court, may, if he thinks fit, try the offence in a summary manner. The offences are

- a) Offences not punishable with death, life imprisonment or imprisonment for a term exceeding 2 years.
- b) Theft (Section-379 to 381 IPC) of property not exceeding 2000 rupees
- c) Receiving/retaining stolen property not exceeding Rs. 2000.

- d) Assisting in the concealment/disposal of such stolen property.
- e) Lurking house trespass (Section-454/456 IPC)
- f) Insult with intent to provoke a breach of the peace (Section-504 IPC) and criminal intimidation (Section-506 IPC)
- g) Abetment of any of the foregoing offences.
- h) An attempt to commit any of the foregoing offences, when such attempt is also an offence.
- i) Any offence constituted by an act in respect of which a complaint may be made under section- 20 of Cattle Trespass Act 1871.

However, if in the course of a summary trial, it appears to him that the nature of the case is such that it is undesirable to try it summarily, the magistrate may recall any already examined witness and rehear the case afresh.

The summary procedure is to be applied to all offences irrespective of the fact whether any offence is punishable under the IPC or not.

Further a magistrate of second class may be empowered by the High Court to try summarily any offence which is punishable only with fine or with imprisonment for a term not exceeding 6 months (with/ without fine) (Section 261).

Procedure for summary trials (Section-262): All cases should be tried by the summons procedure and no sentence of imprisonment for more than three months can be passed in any conviction.

If the court considers that a longer sentence is necessary in the interest of justice in any case, the trial should be held as in a warrant case or as a summons case according to the nature of the offence. But a sentence exceeding three months cannot be passed in summary trials.

Record in summary trials (Section-263): I.

serial number of case.

II. date of the commission of the offence

III. date of report/complaint.

IV. name of complainant.

V. name, parentage and residence of the accused.

VI. offence complained of, and the offence (if any) proved, and value of the property in respect of which the offence has been committed

VII. plea of the accused and his examination

VIII. finding

IX. sentence/other final order

X. date on which the proceedings terminated.

Judgment (Section-264): In every case in which accused does not plead guilty, the magistrate shall record the substance of the evidence and a judgement containing a brief statement of the reasons for the finding.

Language (Section-265): Every such record and judgement shall be written in the language of the court and signed by the magistrate.

Q. Discuss the procedure which is to be adopted by magistrate on receiving a complaint? Can a second complaint lie after the dismissal of the first complaint.

A Magistrate can take cognizance of a complaint *u/s 190 of the Code of Criminal Procedure, 1973*. When a Magistrate takes cognizance of an offence (upon receipt of a complaint or otherwise), he examines the complaint in accordance with Section 200 by examining the facts and the witnesses. If he finds that the complaint is with merits, the case is deemed committed for trial and the magistrate issues the process under Section 204. If the offence is exclusively triable by Court of Session, the Magistrate commits the case to Court of Session under Section 209.

As per Sec. 190, the Magistrate is empowered to take cognizance of an offence in three ways provided therein. However, if he chooses to take cognizance on the basis of a complaint then to investigate and decide upon the matter further, he is bound to follow the provisions laid down by Sec. 200 to Sec. 203 of the Cr.P.C. and if the case demands, also under Sec. 204.

In the case of a first information report, the offence involved is of cognizable nature and thus the police has authority to initiate the investigation in the said case without prior permission from the Magistrate and then file a charge sheet. On the other hand, when a Magistrate takes cognizance of an offence on the basis of a complaint, he orders an investigation in the matter and can also direct the police to lodge an FIR if he feels that the offence is of a serious nature. He is not empowered to take *suo moto* cognizance on the complaint if he is satisfied that there is no grave offence requiring an immediate course of action. He can act upon the complaint only if it reveals a *prima facie* commission of an offence. ***Mopammud Atullah vs. Ram Saran, 1981 Cr LJ 616; Bhagwan Das vs. Bihar, 1978 Cr LJ NOC 59 (Pat)***

The Court, in the matter of ***P. Kunhumammed vs. State of Kerala (1981 Cri LJ 356 Ker HC)*** held that: *"The report of a police officer following an investigation contrary to S. 155(2)[3] could be treated as complaint under S. 2(d) and S. 190(1)(a) if at the commencement of the investigation the police officer is led to believe that the case involved the commission of a cognizable offence or if there is a doubt about it and investigation establishes only commission of a non- cognizable offence"*.

Thus, if at the initial stages of investigation, it is found that the offence committed is of a non-cognizable nature, then the report submitted after investigation cannot be treated as a 'complaint' within the scope of Sec. 2(d) or Sec. 190(1)(a) of the Cr. P.C.

Maintainability of second complaint

There is no statutory bar in filing second complaint-It can be entertained only in exceptional circumstances. However, it could be dismissed if decision against complainant in previous matter has been given upon a full consideration of the matter.

In **Om Prakash Singh v. State of Bihar & Ors.** Supreme Court observed that it is an error to conceive that the proceedings based on the subsequent complaint were liable to be quashed merely because the earlier criminal proceedings were quashed.

In **Udai Shankar Awasthy v. the State of UP**, it was held that “the law does not prohibit filing or entertaining of the second complaint even on the same facts provided the earlier complaint has been decided on the basis of insufficient material or the order has been passed without understanding the nature of the complaint or the complete facts could not be placed before the Court, or where the complainant came to know certain facts after disposal of the first complaint which could have tilted the balance in his favour. However, the second complaint would not be maintainable wherein the earlier complaint has been disposed on full consideration of the case of the complainant on merit”.

Q. Explain the “REVISIONAL JURISDICTION” of a Court. What are the special powers conferred on the High Court under its Revisional Jurisdiction. When a Court can pass an order for paying compensation in favour of an arrested person. Can a Court alter its own judgement?

Revision: The right of appeal is not available in each and every case and is confined to such cases as are specifically provided by law. Secondly, even in such specified cases, the code ordinarily allows only one appeal, and a review of the decision of the appellate court is not normally permissible by way of further appeal to yet another higher court. In order to avoid the possibility of any miscarriage of justice in cases where no right of appeal is available, the code has devised another review procedure namely revision. The powers of revision conferred on the higher courts are very wide and are purely discretionary in nature. Therefore, no party has any right as such to be heard before any court exercising such powers.

Power to call for and examine the record of subordinate court (Section-397): The High Court or the sessions court is empowered to call for and examine the record of any proceedings before any inferior criminal court within its local jurisdiction and satisfy itself as to –

1. the correctness, legality or propriety of any finding, sentence or order recorded or passed by such inferior court
2. the regularity of any proceedings of such inferior court.

While calling for such record, the High Court/Sessions Court may direct that the execution of any sentence or order be suspended and if the accused is in confinement, be released on bail or on his own bond pending the examination of the record.

A court is inferior to other court when an appeal lies from the former to the later. (**Krishnaji Vithal v Emperor**)³³

A revisional authority can take up the matter suo motu. The scope of revisional jurisdiction is limited and discretionary ³⁴

The powers of revision conferred are not to be exercised in relation to any interlocutory order passed in any appeal, inquiry, trial or other proceeding.

Interlocutory order has not been defined in the code, but it means an order which is passed at some intermediate stage of a proceedings generally to advance the cause of justice for the final determination of the rights between the parties. (**Dhola v State**)³⁵

Power of court of revision to order inquiry (Section-398): On examining any record (under section-397) or otherwise, the High Court/sessions judge may direct the CJM to make, or to cause to be made through any other subordinate magistrate, further inquiry into any complaint which has been dismissed [under section-203/204(4)] or into the case of a discharged accused.

However, an opportunity should be given to the accused to show cause why further inquiry should not be ordered.

The effect of order for further inquiry is to set aside the dismissal of complaint or the order of discharge. The High Court, the sessions judge or the CJM have powers of a revisional court where the CJM has once acted, the sessions judge has no jurisdiction to review the order, but he may refer the matter to the High Court and vice-versa.

Sessions judge's powers of revision (Section-394): This section deals with revisional power of the sessions judge while hearing a case records of which have been called for by himself; the sessions judge has the same powers as the High Court has under section-401 of the code.

Power of Additional sessions judge (Section-400): An additional sessions judge shall have and may exercise all the powers of a sessions judge in respect of any case which may be transferred to him by or under any general or special order of the sessions judge.

High court's power of revision (Section-401): In the case of any proceedings the record of which has been called for by itself or which otherwise comes to its knowledge, the High Court may, in its discretion, exercise any of the powers conferred on a court of appeal by Sections-386, 389, 390 and 391 or on a court of sessions by Section-3D? When the judges composing the court of revision are equally divided in opinion, the case shall be disposed of in the manner provided by Section-392.

The revisional jurisdiction of the High Court is very wide and no form of judicial injustice is beyond its reach. The limits placed on revisional jurisdiction of High Court are -

- a. that a finding of acquittal cannot be converted into conviction, and
- b. sentence shall not be enhanced unless the accused has had an opportunity of showing cause against such enhancement and conditions laid down in second proviso to Section- 386 are also fulfilled.

When Accused is Entitled to Compensation?

Article 9.5 of the **International Covenant on Civil and political rights** provided that anyone who has been victim of unlawful arrest or detention shall have an enforceable right to compensation.

Section 358 of The Criminal Procedure Code, 1973 provides for the compensation to persons groundlessly arrested, that -

- (1) Whenever any person causes a police officer to arrest another person, if it appears to the Magistrate by whom the case is heard that there was no sufficient ground for causing such arrest, the Magistrate may award such compensation, not exceeding one hundred rupees, to be paid by the person so causing the arrest to the person so arrested, for his loss of time and expenses in the matter, as the Magistrate thinks fit.
- (2) In such cases, if more persons than one are arrested, the Magistrate may, in like manner, award to each of them such compensation, not exceeding one hundred rupees, as such Magistrate thinks fit.

(3) All compensation awarded under this section may be recovered as if it were a fine, and if it cannot be so recovered, the person by whom it is payable shall be sentenced to simple imprisonment for such term not exceeding thirty days as the Magistrate directs, unless such sum is sooner paid.

Section 250 of the Criminal Procedure Code provides for the compensation for accusation without reasonable cause, that -

(1) If in any case instituted upon complaint or upon information given to a police officer or to Magistrate, one or more persons is or are accused before a Magistrate of any offence triable by a Magistrate, and the Magistrate by whom the case is heard discharges or acquits all or any of the accused, and is of opinion that there was no reasonable ground for making the accusation against them or any of them, the Magistrate may, by his order of discharge or acquittal, if the person upon whose complaint or information or the accusation is present, call upon him forth how cause why he should not pay compensation to such accused or to each or any of such accused when there are more than one or, if such person is not present direct the issue of a summons to him to appear and show cause as aforesaid.

(2) The Magistrate shall record and consider any cause which such complainant or informant may show, and if he is satisfied that there was no reasonable ground for making the accusation, may for reasons to be recorded, make an order that compensation to such amount not exceeding the amount of fine he is empowered to impose, as he may determine, be paid by such complainant or informant to the accused or to each or any of them.

(3) The Magistrate may further order that in default of payment the person ordered to pay such compensation shall undergo simple imprisonment for a period not exceeding thirty days.

Altering its own judgment

Allahabad High Court has held that, in view of the prohibition contained in Section 362 of the Code of Criminal Procedure even the High Court in exercise of its inherent power under Section 482 CrP.C has no authority or jurisdiction to alter/review a Judgment in a Criminal Case, after the Judgement is signed.

Relying on the Supreme Court Judgment in Sooraj Devi Vs. Pyare Lal, 1981 (1) SCC 500, the Court held that the prohibition in Section 362 CrPC against the court altering or reviewing its judgment, is subject to what is "otherwise provided by this code or by any other law for the time being in force". These words, however, refer to those provisions only where the Court has been expressly authorized by the code or other law to alter or review its judgement. The inherent power of the court is not contemplated by the saving provision contained in Section 362 CrPC and, therefore, the attempt to invoke that power can be of no avail.

Criminal justice delivery system does not clothe the court to add or delete any words, except to correct the clerical or arithmetical error as specifically been provided under the statute itself after pronouncement of the judgment as the Judge becomes functus officio. Any mistake or glaring omission is left to be corrected only by the appropriate forum in accordance with law (*State of Punjab Vs. Davinder Pal Singh Bhullar, (2011) 14 SCC 770*). The same principle is applicable while considering an application for recall /modification/review of an order passed under Section 482 Cr.P.C. The inherent power under Section 482 Cr.PC is intended to prevent the abuse of the process of the court and to secure the ends of justice. Such power, cannot be exercised to do something which is expressly barred under the code. If any consideration of the facts by way of review is not permissible under the Code and is expressly barred, it is not for the court to exercise its inherent power to reconsider the matter and record a conflicting decision. If there had been change in the circumstances of the case, it would be in order for the High Court to exercise its inherent powers in the prevailing circumstances and pass appropriate orders to secure the

ends of justice or to prevent the abuse of the process of the court. Where there are no such changed circumstances and the decision has to be arrived at on the facts that existed as on the date of the earlier order, the exercise of the power to reconsider the same materials to arrive at different conclusion is in effect a view which is expressly barred under Section 362 CrPC”.

Power to recall: According to Allahabad HC, a tribunal or a court may recall an order earlier made by it if: (i) the proceedings culminating into an order suffer from the inherent lack of jurisdiction and such lack of jurisdiction is patent, (ii) there exists fraud or collusion in obtaining the judgment, (iii) there has been a mistake of the court prejudicing a party, or (iv) a judgment was rendered in ignorance of the fact that a necessary party had not been served at all or had died and the estate was not represented

“If a judgement has been pronounced without jurisdiction or in violation of principle of natural justice or where the order has been pronounced without giving an opportunity of being heard to a party affected by it or where an order was obtained by abuse of the process of court which would really amount to its being without jurisdiction, inherent powers can be exercised to recall such order for the reason that in such an eventuality the order becomes a nullity and the provisions of Section 362 Cr.P.C would not operate. In such an eventuality, the judgment is manifestly contrary to the audi alteram partem rule of natural justice. The power of recall is different from the power of altering/reviewing the judgment. However, the party seeking recall/alteration has to establish that it was not at fault”

Q. What are the provisions under the Code of Criminal Procedure regarding appeal against Conviction and acquittal? Discuss when appeal does not lie against conviction. Does an appeal lie in cases where accused pleads guilty? When an appeal will be filed by the State Government against a sentence?

Human judgment is not infallible. Despite all the provisions for ensuring a fair trial and a just decision, takes are possible and errors cannot be ruled out. The code therefore provides for appeals and revisions and thereby enables the superior courts to review and correct the decisions of the lower courts.

An appeal is a complaint to a superior court of an injustice done or error committed by an inferior one, whose judgement or decision the court above is called upon to correct or reverse.

An appeal is a creature of statute and there can be no inherent right of appeal from any judgement or determination unless an appeal is expressly provided for by the law itself. [*Durga Sankar v Raghuraj Singh* 2004 Cr LJ 4667 (SC)]

Types of Appeal

No appeal to lie unless otherwise provided (Section-372): No appeal shall lie from any judgement or order of a criminal court except as provided by the code or by any other law.

Appeal from orders requiring security for keeping peace etc (Section-373): This Section applies to

- a) appeals from order requiring security for keeping peace or for good behaviour.
- b) appeal against an order rejecting a surety or refusing to accept a surety under section-121 of the code.

But, where proceedings are laid before a sessions judge under section-122(2) or 122(4) no appeal shall lie.

SECTION 374: APPEALS FROM CONVICTIONS

- Any person convicted on a trial held by a High Court in its extraordinary original criminal jurisdiction may appeal to the Supreme Court.
- Any person convicted on a trial held by a Sessions Judge or an Additional Sessions Judge or on a trial held by any other Court in which a sentence of imprisonment for more than seven years [has been passed against him or against any other person convicted at the same trial]; may appeal to the High Court
- Save as otherwise provided in sub-section (2), any person,
 - convicted on a trial held by a Metropolitan Magistrate or Assistant Sessions Judge or Magistrate of the first class, or of the second class, ○ sentenced under section 325, or
 - in respect of whom an order has been made or a sentence has been passed under section 360 by any Magistrate, may appeal to the Court of Session.

While disposing of appeals from the sentences of the Sessions Court under this Section, the High Court should specify the reasons for rejection of appeal and should not reject it summarily. This will enable the Supreme Court to know the view of the High Court, in case the appellant moves the Supreme Court in appeal. For computing the sentence of imprisonment for seven years for the purpose of ascertaining the appellate forum under Section 374 (2), the sentence in default of payment of a fine is not to be added to the substantive sentence of imprisonment.

An appeal from an order of acquittal must be filed within the period of limitation prescribed by Article 114 of the Schedule of the Limitation Act, 1963. For the extension of the period of limitation, and for exclusion of time in computing the period of limitation, Sections 5 and 12 of the Limitation Act, 1963 would be useful.

The High Court in case of appeal against conviction has full power to re-appreciate evidence and come on a conclusion independently. But there should be proper appreciation of evidence and the finding has to be recorded against each witness as to why the said witness is not being believed when he was believed by the trial court, ***[State of Karnataka v Pappanna, 1991 Cr LJ 777 (Karn)]***

NO RIGHT OF APPEAL

Section 375 and 376 bar appeals in certain cases, though a provision of Revision is maintainable. Thus no appeal shall lie-

- Where a High Court passes a sentence of imprisonment not exceeding six months or fine not exceeding one thousand rupees or both;
- Where a Court of Session or a Metropolitan Magistrate passes a sentence of imprisonment not exceeding three months or fine not exceeding two hundred rupees or both;
- Where a Magistrate of the First Class passes a sentence of fine not exceeding one hundred rupees; or □

Where in a summary case, a Magistrate passes a sentence of fine not exceeding two hundred rupees.

APPEAL FOR ENHANCEMENT OF SENTENCE by Government

Section 377 confers right on the Government to file an appeal against the inadequacy of sentence awarded by any court other than a High court. If the sentence appears to be manifestly inadequate resulting in failure of justice, the appellate court can interfere with it and can enhance the sentence. But at the same time, the high court can also exercise its revisional jurisdiction, suo motto call for the record and enhance the sentence in appropriate cases after giving an opportunity to the accused, ***Bachan Singh v. State of Punjab, AIR 1980 SC 267***. The appellate court must pass a speaking order for enhancing the sentence. A bold statement that the ends of justice demanded enhancement of sentence was held insufficient by courts.

An appeal under Section 377 must be filed by the State within a period of 60 days and the contention of the State that it was under a mistaken belief that period of limitation is ninety days would be no excuse for condonation of the delay.

In a case where the accused is tried for more than one offence, the trial court should pass separate sentence for each of such offences. (***State of Karnataka v Mohd. Jaffer, AIR 1949 Bom 29***)

APPEAL IN CASE OF ACQUITTAL

Under Articles 132, 134 and 136 of the Constitution of India, it may be possible to present an appeal to the Supreme Court against the order of acquittal passed by the High Court.

An appeal from an order of acquittal must be filed within the period of limitation prescribed by Article 114 of the Schedule of the Limitation Act, 1963. For the extension of the period of limitation, and for exclusion of time in computing the period of limitation, Sections 5 and 12 of the Limitation Act, 1963 would be useful.

Appeal against an order of acquittal is an extraordinary remedy. In exercising this power the High Court should give proper weight and consideration to **“Very substantial and compelling reasons.”**

“Very substantial and compelling reasons” exist when:

- The trial court’s conclusion with regard to the facts is palpably wrong;
- The trial court’s decision was based on an incorrect view of law;
- The trial court’s judgment is likely to result in “grave miscarriage of justice”;
- The entire approach of the trial court in dealing with the evidence was patently illegal;
- The trial court’s judgment was manifestly unjust and unreasonable;
- The trial court has ignored the evidence or misread the material evidence or has ignored material documents like dying declarations/ report of the Ballistic expert, etc.
- This list is intended to be illustrative, not exhaustive.

The Appellate Court must always give proper weight and consideration to the findings of the trial court. If two reasonable views can be reached – one that leads to acquittal, the other to conviction – the High Court’s/appellate courts must rule in favour of the accused.

POWERS OF APPELLATE COURT IN APPEAL AGAINST ACQUITTAL

In Chandrappa & Others v. State of Karnataka, (2007) 4 SCC 415 , Supreme Court held:

1. An appellate court has full power to review, re-appreciate and reconsiders the evidence upon which the order of acquittal is founded.
2. The Code of Criminal Procedure, 1973 puts no limitation, restriction or condition on the exercise of such power and an appellate court on the evidence before it may reach its own conclusion, both on questions of fact and of law.
3. Various expressions, such as, “substantial and compelling reasons”, “good and sufficient grounds”, “very strong circumstances”, “distorted conclusions”, “glaring mistakes”, etc. are not intended to curtail extensive powers of an appellate court in an appeal against acquittal. Such phraseology are more in the nature of “flourishes of language” to emphasize reluctance of an appellate court to interfere with acquittal than to curtail the power of the court to review the evidence and to come to its own conclusion.
4. An appellate court, however, must bear in mind that in case of acquittal, there is double presumption in favour of the accused. Firstly, the presumption of innocence is available to him under the fundamental principle of criminal jurisprudence that every person shall be presumed to be innocent unless he is proved guilty by a competent court of law. Secondly, the accused having secured his acquittal, the presumption of his innocence is further reinforced, reaffirmed and strengthened by the trial court.
5. If two reasonable conclusions are possible on the basis of the evidence on record, the appellate court should not disturb the finding of acquittal recorded by the trial court.”

SECTION 379 – APPEAL AGAINST CONVICTION BY HIGH COURT IN CERTAIN CASES

Where the High Court has, on appeal, reversed an order of acquittal of an accused person and convicted him and sentenced him to death or to imprisonment for life or to imprisonment for a term of ten years or more, he may appeal to the Supreme Court.

An appeal to would lie to the Supreme Court as a matter of right when High Court, on appeal,

1. Reversed an order of Acquittal of an accused person and
2. Convicted and sentenced him to death or to imprisonment for life or to imprisonment for a term of ten years or more, ***Chandra Mohan Tiwari v. State of Madhya Pradesh, AIR 1992 SC 891.***

In other cases appeal can be filed, if the High Court certifies that the case is a fit one for appeal to the Supreme Court. Only grave injustice manifest on record can induce the Supreme Court to interfere with the concurrent finding of guilt of Courts below. The Court would be slow in reversing the finding entered by the High Court unless there is a perverse and erroneous appreciation of evidence. If the High Court, for acquitting the accused has given certain tenable reasons, the Supreme Court would not be justified in interfering with such acquittal, ***Vijaybhai Bhanabhai Patel v. Navnitbhai Nathubhai Patel, (2004) 10 SCC 583.*** The word “acquittal” doesn’t mean that the trial must have ended in a complete acquittal but would also include the case where an accused has been acquitted of the charge of murder and has been convicted of a lesser offense, ***Tarachand Damu v. State of Maharashtra, 1962 AIR 130.***

SECTION 380- SPECIAL RIGHT OF APPEAL IN CERTAIN CASES

Notwithstanding anything contained in this Chapter, when more persons than one are convicted in one trial, and an appealable judgment or order has been passed in respect of any of such person, all or any of the persons convicted at such trial shall have a right of appeal.

Q. Distinguish between appeal and revision with suitable illustrations

- (1) Appeal is a legal right of a party but revision depends on the discretion of the Court, therefore it cannot be claimed as a matter of right.
- (2) An appeal may lie on the point of law as well as on facts but a revision generally lies on the question of law only.
- (3) In case of appeal, the appellant is heard, but it is not necessary in case of a revision petition.
- (4) In case of appeal, the Appellate Court can neither increase the sentence nor pardon the appellant but both these are possible in case of revision.
- (5) In appeal, the higher court may convert discharge of the accused into his conviction but this cannot be done in case of revision.
- (6) The courts have extensive powers of interference in criminal appeals but the power of courts is very limited in revision.
- (7) There is only one procedure involved in appeal but there are two procedures involved in case of revision, i.e., preliminary and final.

Q. Under what circumstances can a person be required to execute a bond for keeping the peace, and for keeping good behaviour? What is the procedure to be followed in a proceeding for taking security for peace or for maintaining good behaviour?

Security for keeping the peace and good behaviour: The provisions of this chapter are preventive in scope and object, and are aimed at persons who are a danger to the public by reason of the commission by them of certain offences. A person against whom allegations have been made in a proceedings under this chapter is not an accused. The provisions are essentially to maintain public order and in the interest of the general public. However, a Magistrate must, in all cases, exercise this preventive jurisdiction with cautions and watchful case, so as to ensure that the administration of this branch of criminal law does not become harsh and oppressive.

Security for keeping the peace on Conviction (Section-106); When a person is convicted either by Court of Sessions or by a Court of first class Magistrate of offences specified below, or of abetting any such offence and the court is of the opinion that it is necessary to take security from such a person for keeping the peace, at the time of passing the sentence, it may order him to execute a bond (with or without sureties) for keeping the peace for such period not exceeding three years. The offences area:

- a. Any offence punishable under chapter VIII of the I.P.C., 1860, other than an offence punishable under Section 153 A/B or Section-154 thereof.

b. any offence which consists of or includes, assault or using criminal force or committing mischief. c.

any offence of criminal intimidation.

d. any other offence which caused, or was intended as known to be likely to cause a breach of peace.

There is no question of bail to the person proceeded against under this chapter because bail is only for continued appearance of a person and not to prevent him from committing certain acts. (*Madhu Umaye v D.M. Morzhyr*)

Security for keeping the peace in other cases (Section-107): 1. When an Executive Magistrate receives information that any person is likely to commit a breach of the peace or disturb the public tranquility or do any wrongful act that may probably occasion a breach of the peace, etc and he is of the opinion that there is sufficient ground for proceeding, he may require such person to show cause why he should not be ordered to execute a bond (with or without sureties), for keeping the peace for a period up to one year.

2. The person informed against or the place where the breach of the peace is apprehended should be within the jurisdiction of the Magistrate.

There must be satisfactory evidence that the person proceeded against has done something, or taken some step that indicates an intention to break the peace or that he is likely to occasion a breach of the peace.

Proceedings for Disseminating Seditious Matters (Section-108) : 1. The proceedings can be taken against a person who- (i) intentionally disseminates (or attempts or abets) any matter the publication of which is punishable under section-124A (sedition) /Section-153A (promoting enmity between classes, etc)/ Section-295A (insulting the religious beliefs) of the I.P.C., 1860, or any matter concerning a judge which amounts to criminal intimidation/defamation under the I.P.C.(ii) makes, produces, publishes, etc. any obscene matter referred to in Section-292, I.P.C. (intention is immaterial)

2. No proceedings shall be taken against the editor, proprietor, printer/publisher except by the order or under the authority of the State Government.

The Magistrate may require such person to show cause why he shall not be ordered to execute a bond (with or without sureties) for his good behaviour for such period, not exceeding one year.

Proceedings against suspected criminals (Section-109): When a person takes precautions to conceal his presence with a view to committing a cognizable offence within the local limits of the jurisdiction of an Executive Magistrate. The Magistrate may require such person to show cause why he should not be ordered to execute a bond (with or without sureties) for good behaviour for a period not exceeding one year.

The expression 'concealing his presence' would also cover a case where a man conceals his appearance, as, by wearing a mask or covering his face or disguising himself by a uniform, etc.

Proceedings against habitual offenders (Section-110) : This provision is against the habitual offenders which means- (i) habitual robber, house-breaker, thief/forgery, (ii) habitual receiver of stolen property, (iii) habitual protector/harbinger of thieves or habitual abettor in the concealment/disposal of stolen property (iv) habitual kidnapper, abductor, extortioner, cheat or a person habitually committing mischief, offences relating to coin, stamps, etc. (v) habitual offender/abettor of a breach of the peace (vi) habitual offender committing/attempting to commit or abetting the commission of offences under the Acts, namely Drugs and Cosmetics Act, 1940, FERA, 1973, Employees Provident Fund Acts 1952 etc.

An Executive Magistrate receiving information about such person within his local jurisdiction, may require him to show cause why he should be ordered to execute a bond (with sureties) for his good behaviour for such period not exceeding three years.

Q. Explain the provisions relating to power of a Magistrate to issue Order in urgent cases of nuisance or apprehend danger. Briefly discuss the procedure to be followed under such circumstances.

Whenever it appears to a Magistrate—who may be a district Magistrate, a sub-divisional Magistrate or any other specially empowered executive Magistrate—that: (a) immediate prevention of a public nuisance, or (b) speedy remedy of an apprehended danger is desirable, he may issue a written order which must set forth the material facts of the case and be served as a summons. The order must direct any person: (a) to abstain from a certain act or (b) to take certain order with respect to certain property in his possession or under his management.

The direction can, however, be given only where the Magistrate considers that such direction is likely to prevent : (i) obstruction, annoyance or injury to any person lawfully employed, or (ii) danger to human life, health or safety, or (iii) disturbance of the public tranquility, or a riot, or any affray.

In cases of emergency or where the circumstances do not admit of personal service, such an order can be passed ex parte, i.e., in the absence of the other party. The order may be directed to a particular individual, or to a person residing in a particular place or area, or to the public generally when frequenting or visiting a particular place or area.

The order can, at the most remain in force for two months from the making thereof but in cases of danger to human life, health or safety or a likelihood of riot or an affray, the State Government may, by notification, extend it for a longer period not exceeding six months from the date on which the order made by the Magistrate would have, but for such order, expired.

The Magistrate may rescind or alter the order either suo moto, i.e., on his own motion or on the application of the aggrieved person. The State Government may also suo motu, or on the application of the aggrieved party, rescinds or alters any order. On receipt of such an application the applicant will have a right of hearing and of showing cause against the order. If the application is rejected, the Magistrate or the State Government, as the case may be, shall record in writing his reasons for doing so. (Section 144)

The powers given to the Magistrates mentioned above under Section 144, Cr.P.C. are very wide and must be exercised with discretion and discrimination. The urgency of a case of nuisance or apprehended danger is essential to its treatment under Section 144, Cr.P.C. and the orders to be passed under this section must be of a temporary nature unless in special cases the Government, by notification, extends it for a further period not exceeding six months.

The object of Section 144, Cr.P.C. certainly cannot be to oust one particular person or party which is acting under the colour of office and put another person or party in possession of the property or in the management of the institution. It is a different matter that the title of such person or party can be challenged in civil court.

The proper Course for the Magistrate is to find out which party is wrong and if he finds on the evidence that the second party is in the wrong and is interfering unnecessarily with the exercise of the legal powers of the first party, he ought to bind down the second party restraining them from committing any act which may lead to a breach of peace. (*Anjani Nandan Misra v. State of U.P., 1976 A.I.R. 2 S.C.*).

Q. When can the police start investigation without permission from the courts? How does enquiry differ from investigation?

Information in respect of non-cognizable offences (Section-155): When any information in respect of noncognizable offence is given to an officer-in-charge of a police station, he must enter the substance of the information in a book prescribed for this purpose, and refer the information to the Magistrate. The primary rule is that no police officer shall investigate a non-cognizable case without the order of a competent Magistrate. On receiving the order he may exercise the same power as in a cognizable case (except to arrest without warrant). Where a case relates to two or more offences of which at least one is cognizable, the case shall be deemed to be a cognizable case.

If a Magistrate, who is not empowered, erroneously orders in good faith an investigation under section- 155(2), the proceedings shall not be set aside merely on the ground of his not being so empowered. (Section-460(1)(b))

Police officer's power to investigate cognizable case (Section-156): The police is empowered to investigate into a cognizable offence without order of a Magistrate or without a formal first information report. If the police do not investigate the Magistrate can order the investigation. (*Abhaynand Jha v Dinesh Chandra, AIR 1968 SC 196*)

But if the police investigate, the magistrate cannot prevent them from investigation. (*S.N. Sharma v Bipin Kumar Tiwari, AIR 1970 SC 786*)

If, however, the FIR or other relevant materials do not prima facie disclose any cognizable offence, the police in that case have no authority to investigate. In such a case the High Court, in the exercise of its inherent powers under section-482 or in the exercise of powers under section-226 of the constitution can stop and quash such an investigation. (*State of WB. v Swapan Kumar Guha, 1982 SCC (Cri) 283*)

When a complaint is filed before a magistrate, the magistrate instead of taking cognizance of the offence, may simply order investigation by police under section-156(3)

Investigation v. Inquiry

Inquiry: Inquiry means every inquiry, other than a trial, conducted under this code by a magistrate or court. (Section-2g)

All those proceedings before a magistrate prior to the framing of a charge which do not result in conviction can be termed as Inquiry

Investigation: Investigation includes all the proceedings under this code for the collection of evidence conducted by a police officer or by any person (other than a magistrate) who is authorised by a magistrate in this behalf (Section-2h)

The definition given in the code is not exhaustive. The arrest and detention of a person for the purpose of investigation of a crime forms an integral part of the process of investigation. (*Baldev Singh*)³⁹ There are three stages in a criminal case.

Investigation

b. inquiry, and

c. trial.

If the investigating officer finds that no offence has been committed, he reports the fact to a magistrate who drops the proceedings and the case thereby comes to an end.

Difference between investigation and inquiry:

- a. An investigation is made by a police officer or by some person authorised by a magistrate. Inquiry is made by a magistrate or a court. Investigation is never made by a magistrate or court.
- b. The object of an investigation is to collect evidence for the prosecution of the case. The object of inquiry is to determine the truth or falsity of certain facts with a view to taking further action thereon.
- c. Investigation is the first stage of a criminal case and is normally followed by inquiry by a magistrate. Inquiry is the second stage of a case and is ordinarily preceded by investigation.
- d. Investigation is not a judicial proceeding, whereas an inquiry is a judicial proceeding.

Q. Who will claim maintenance? Explain the grounds for which an order of maintenance of wives, children and parents be passed under Section 125 of the Code of Criminal Procedure, 1973. When order of maintenance will be altered? How the order of maintenance will be enforced? Is a married daughter liable to pay maintenance to her aged & infirm parents? Discuss a leading case on this point .

Section-125 to 128 (Chapter-IX) provide for speedy, effective and inexpensive remedy against persons who neglect or refuse to maintain their 'dependent' wives, children and parents. These provisions are aimed at preventing starvation and vagrancy relating to the commission of crime.

These provisions are applicable to persons belonging to all religions and have no relationship with the personal law of the parties, or nationality or domicile of the parties. If a person gets any maintenance under his/her personal law, the magistrate may take into consideration while fixing the amount. So the provisions of the Cr.P.C. are the secular provisions. Thus, a Shia wife under muta marriage is entitled to maintenance under this section-125, although she may not enjoy the right under Muslim Law.

Persons Entitled to Claim, Maintenance

1. Wife (Section 125(1) a)
2. Minor child, illegitimate/legitimate, married/ unmarried (excepted a married daughter whose husband is capable to maintain her (Section-125b)
3. Major child, legitimate or illegitimate (not a married daughter) who by reason of any physical! mental abnormality or injury unable to maintain itself (Section-125c).
4. Father/Mother unable to maintain himself (Section-125d).

Wife [Section-125(1)(a)]: The wife (minor/major), unable to maintain herself, is entitled to maintenance. Wife includes a woman who has been divorced by, or has obtained divorce from her husband and has not remarried. So, a woman divorced by her husband under Hindu Law continues to enjoy the status of wife for maintenance only.

Wife means only legally wedded wife and therefore any marriage proved illegal cannot give a wife any right to get maintenance. The second wife cannot be entitled to be maintained. The legality of marriage is proved by the personal law of the parties and a woman living as wife is not the wife.

A strict proof of marriage is not sine qua non in considering relief under section-125 but this does not mean that if parties were living together as husband and wife that she has a right to claim of maintenance. Husband's remarriage gives a right of maintenance to the first wife - The Supreme Court held that the first wife could claim maintenance while living separately even though the second marriage was valid' their personal laws permit them. The court further held that either he had remarried or had kept a mistress, the first wife was entitled to maintenance and offer by husband to take her back could not be considered bonafide. The first wife is entitled even if she consented to the remarriage of his husband.

Child [Section-125(1)(b)(c): A minor child whether legitimate/illegitimate, married/unmarried, is entitled to claim maintenance.

Minor means - a person who has not completed the age of 18 years according to the Indian Majority Act, 1875. According to proviso of section-125(1) if the husband of minor female child is not possessed of sufficient means, the father of such child is required to maintain herself until her majority.

It is immaterial in which custody the child is, either in mother's custody under Muslim Law or in a guardian's appointed by the court; the father still has the obligation to maintain.

The basis of an application for the maintenances of a child is paternity of the child either legitimate/ illegitimate. It is also immaterial whether the child is natural born or adopted.

Even after attaining majority, a legitimate/illegitimate child (except a married daughter) is entitled to claim maintenance if he is unable to maintain itself because of any physical or mental abnormality or injury. Section 125(1)(c) a minor child could claim maintenance from father living abroad (*Priyal v. Dr. Pradeep K. Kamboj 2000*).

Father or Mother [Section-125(1)(d)] : A father or daughter or mother, unable to maintain himself or herself, is entitled to claim maintenance from his or her son. The Supreme Court held that apart from any law, the Indian society casts a duty on the children to maintain the parents and this social obligation equally applies to a daughter (*Vijaya Manohar Arbat v. Kashirao 1989 SC*). Mother includes adoptive mother but not step mother. The Supreme Court had that a childless stepmother may claim maintenance from her step son provided she is widow or her husband, if living is unable to support and maintain her (*Kirtikant v. State of Gujarat 1996 SC*). A claim may be asked with a legitimate child only.

Basis of the Claim of Maintenance

1. **Sufficient Means to Maintain:** Means the capability of earning and the health rather than visible means such as real property or definite employment. So the unemployment in debt, insolvent, professional beggar or monk are not considerable ground. The burden of proof is on him that by reason of some ailment/infirmity or accident he is unable to maintain.

2. Neglect or Refusal to Maintain: The term neglected is used in a wider sense so as to include disregard to duty whether willful or intentional. Similarly, refusal to maintain need not to be express and it may be implied from the conduct. Burden of proving neglect is on the claimant. Change of religion does not relieve a person of his obligation to maintain (*M.A. Rahman v. Venkata Ramamma, 1980 A.P.*). Maintenance means appropriate food, clothing and lodging and it must include the minimum amount of a child's education.

A wife's claim of maintenance may be defeated section-125(4)-

- a. If she is living in adultery and it must be a continuous course and not an isolated act.
- b. If she refused to live with her husband without any sufficient reason. However if a husband contracted other marriage or keeps a mistress, it is considered a good ground for refusal to live with him.
- c. If the parties are living separately by mutual consent. While living separately she cannot be characterized as wife but children living with her can claim.

Claimant must be unable to Maintain himself/herself: Inability of wife to maintain herself is a condition precedent to grant maintenance under Section-125 and it is not specifically necessary to plead that she is unable to maintain herself. If the wife is able to earn but refused, this does not affect her right to claim but she would be disentitled to get full amount of maintenance.

The phrase 'unable to maintain itself in the context of a child means unable to earn a livelihood for itself.

A father is also entitled if unable to maintain himself. This is a statutory obligation and the claim cannot be defeated that the father had failed to fulfill his parental obligation towards the children during their minority.

Quantum of Maintenance: No maximum limit is fixed and the Magistrate may order such monthly amount as he thinks fit according to the merits of each case (e.g. status of the family) and the separate income and means of the person claiming maintenance are to be taken into account. The monthly amount which is fixed, if necessary can be altered from time to time under section-127.

Each claimant should be awarded separately, a joint award of maintenance to wife and child is not within the contemplation of section-125(1).

Interim Maintenance [Section-125(2)]: The Magistrate can order the payment of maintenance allowance (or interim maintenance and expenses of the proceedings) from the date of the order or from the date of the application.

To grant interim maintenance is the court's inherent power (*Savitri v. Govind 1986*).

Now Interim maintenance has been incorporated in CrPC (Proviso II of Section 125 (1)). The Magistrate may during the pendency of proceeding, order to make a monthly allowance for the interim maintenance of his wife or such child, father or mother and the expense of such proceeding. An application of the interim maintenance, as far as possible, be disposed of within 60 days of the service of notice of the application to such person.

Alteration and Cancellation of Maintenance Order (Section-127): The Magistrate has the power to alter or cancel the maintenance order according to the change in circumstances of the party paying or receiving the allowance. The amount may be increased or decreased, if the person paying the amount has retired or ailing in a hospital or the claimant got a job.

The Magistrate should vary his order accordingly to the decision of a competent civil court [section-127(2)].

The Magistrate shall cancel the order made in the favour of a wife if she is living in adultery or that without sufficient reason she refuses to live with her husband or that they are living separately by mutual consent [section 125 (4)].

The order made in the favour of a divorced wife may be cancelled [section-127 (3)]-

- a. When she remarries (from the date of marriage).
- b. When she has received whether before/after the date of maintenance order, the whole of the sum which under any customary or personal law applicable to the parties, may be payable on such divorce.
- c. When she has voluntarily surrendered her right to maintenance after her divorce.

An order once passed remains in force until it is either cancelled or modified by the court. **Jurisdiction**

(Section 126): A wife can sue her husband for maintenance -

- a) Where the person works for gain, or
- b) Where he resides, or
- c) Where his wife resides, or
- d) Where he last resided with his wife; or ii) the mother of the illegitimate child.

Parents can petition for maintenance at place where their children reside. (*N.B. Bhkshu v. State, 1993 A.P*) or where they reside themselves.

Section 128 Enforcement of order of maintenance.

A copy of the order of ¹[maintenance or interim maintenance and expenses of proceeding, as the case may be,] shall be given without payment to the person in whose favour it is made, or to his guardian, if any, or to his guardian, if any, or to the person to ²[whom the allowance for the maintenance or the allowance for the interim maintenance and expenses of proceeding, as the case may be,] is to be paid; and such order may be enforced by any Magistrate in any place where the person against whom it is made may be, on such Magistrate being satisfied as to the identity of the parties and the non-payment of the ³[allowance, or as the case may be, expenses, due].

Is Married daughter liable to maintain her aged and infirm Parents?

The Bombay High Court has said that a married daughter is obligated to maintain her parents in a case where parents filed an application seeking maintenance from their eldest son under Section 125(1)(d) of the Code of Criminal Procedure, which gives courts the right to compel someone to maintain their parents provided that they have sufficient means to do so.

In, *Vasant vs. Govindrao Upasrao Naik, Criminal Revision Application No. 172/2014*, the High Court rejected the contention that a married daughter has obligations only towards her husband's family and not to her own parents. **"In the instant case, married daughter proved to have been working as a Software Engineer in USA and having sufficient means, is under an obligation to maintain her parents,"** it said. Though the Joint Committee recommended that if there are two more children the parents may seek the remedy against any one or more of

them, the same appear to have not been accepted by the Parliament in its infinite wisdom, and that is why the same is not inserted in the provision of Section 125 Cr.P.C. It thus remained only a recommendation and did not crystallize into law. **Insofar as the present case is concerned, what is seen is that the eldest son has prima facie shown that the married daughter and the younger son have been earning lordly sums by way of income and because of the dispute with the eldest son and his wife, the parents have sought maintenance from him only, without joining the married daughter and younger son to the proceeding.**

Q. Write short notes on:

a. FIR b. Police report c. Warrant case and Summons Case d. Compoundable Offence and Non Compoundable offence e. Charge Sheet f. Discharge g. Acquittal h. Complaint i. Public Prosecutor

a. First Information Report: An information given under sub-section (1) of section 154 CrPC is commonly known as first information report though this term is not used in the Criminal Procedure Code (in short CrPC). It is the earliest and the first information of a cognizable offence recorded by an officer-in-charge of a police station. It sets the criminal law in motion and marks the commencement of the investigation which ends up with the formation of opinion under section 169 or 170 CrPC, as the case may be, and forwarding of a police report under section 173 CrPC. It is quite possible and it happens not infrequently that more information than one are given to a police officer-in-charge of a police station in respect of the same incident involving one or more than one cognizable offences. In such a case he need not enter every one of them in the station house diary and this is implied in section 154 CrPC. Apart from a vague information by a phone call, the information first entered in the station house diary, kept for this purpose, by a police officer-in-charge of a police station is the first information report-FIR postulated by section 154 CrPC. All other information made orally or in writing after the commencement of the investigation into the cognizable offence disclosed from the facts mentioned in the first information report and entered in the station house diary by the police officer or such other cognizable offences as may come to his notice during the investigation, will be statements falling under section 162 CrPC. No such information/statement can properly be treated as an FIR and entered in the station house diary again, as it would in effect be a second FIR and the same cannot be in conformity with the scheme of CrPC.

The purpose of registration of FIR is manifold that is to say

- (1) to reduce the substance of information disclosing commission of a cognizable offence, if given orally, into writing.
- (2) If given in writing to have it signed by the complainant.
- (3) To maintain record of receipt of information as regards commission of cognizable offences.
- (4) To initiate investigation on receipt of information as regards commission of cognizable offence.
- (5) To inform Magistrate forthwith of the factum of the information received.

The principal object of the FIR from the point of view of the informant is to set the criminal law in motion and from the point of view of the investigating authorities is to obtain information about the alleged criminal activity so as to be able to take suitable steps to trace and bring to book the guilty.

Evidentiary value of FIR: FIR is not a piece of substantive evidence. It can be used only for limited purposes, like corroborating under section 157 of the Evidence Act or contradicting (cross-examination under section 145 of Evidence Act) the maker thereof, or to show that the implication of the accused was not an after-thought. It can also be used under section 8 and section 11 of the Evidence Act. Obviously, the FIR cannot be used for the purposes of corroborating or contradicting or discrediting any witness other than the one lodging the FIR. It cannot be used for corroborating the statement of a third party. If the FIR is of a confessional nature it cannot be proved against the accused-informant, because according to section 25 of the Evidence Act, no confession made to a police officer can be proved as against a person accused of any offence. But it might become relevant under section 8 of the Evidence Act.

b. Police Report: Legal provisions regarding report of police officer on completion of investigation under section 173 of the Code of Criminal Procedure, 1973.

- (1) Every investigation shall be completed without unnecessary delay;
- (2) (i) As soon as the investigation is completed, a report is to be submitted to the magistrate empowered to take cognizance of the offence on a police report (i.e., the charge-sheet or the challan). The report is to be in the form prescribed by the State Government, stating:—
 - (a) The names of the parties;
 - (b) The nature of the information;
 - (c) The names of the persons who appear to be acquainted with the circumstances of the case;
 - (d) Whether any offence appears to have been committed and, if so, by whom;
 - (e) Whether the accused has been arrested;
 - (f) Whether he has been released on his bond and, if so, whether with or without sureties;
 - (g) Whether he has been forwarded in custody under Section 170 of the Code.
- (ii) The officer shall also communicate, in such manner as may be prescribed by the State Government, the action taken by him, to the person, if any, by whom the information relating to the commission of the offence was first given.
- (3) Where a superior officer of police has been appointed under Section 158, the report shall, in any case in which the State Government by general or special order so directs, be submitted through that officer, and he may, pending the orders of the Magistrate, direct the officer in charge of the police station to make further investigation.
- (4) Whenever it appears from a report forwarded under Section 173 that the accused has been released on his bond, the Magistrate shall make such order for the discharge of such bond or otherwise as he thinks fit.
- (5) When such report is in respect of a case to which Section 170 applies, the police officer shall forward to the Magistrate along with the report:—

(a) All documents or relevant extracts thereof on which the prosecution proposes to rely other than those already sent to the Magistrate during investigation;

(b) The statements recorded under Section 161 of all the persons whom the prosecution proposes to examine as its witnesses.

(6) If the police officer is of opinion that any part of any such statement recorded under Section 161 of the Code is not relevant to the subject-matter of the proceedings or that its disclosure to the accused is not essential in the interests of justice and is inexpedient in the public interest, he shall indicate that part of the statement and append a note requesting the Magistrate to exclude that part from the copies to be granted to the accused and stating his reasons for making such request.

(7) Where the police officer investigating the case finds it convenient so to do, he may furnish to the accused copies of all or any of the documents referred to in the provisions of Section 173(5) of the Code.

In *Dinesh Dalmia v. C.B.I.*, it was observed that a charge-sheet is a final report within the meaning of Section 173(2). It is filed so as to enable the Court concerned to apply its mind as to whether cognizance of the offence thereupon should be taken or not.

The report is ordinarily filed in the form prescribed therefore. One of the requirements for submission of a police report is whether any offence appears to have been committed and, if so, by whom.

In some cases, the accused having not been arrested, the investigation against him may not be complete. There may not be sufficient material for arriving at a decision that the absconding accused is also a person by whom the offence appears to have been committed. If the investigating officer finds sufficient evidence even against such an accused who had been absconding, law does not require that filing of the charge-sheet must await the arrest of the accused.

The power of the investigating officer to make a prayer for making further investigation in terms of sub-section (8) of Section 173 is not taken away only because a charge-sheet is filed. A further investigation is permissible even if order of cognizance of offence has been taken by the Magistrate.

So long a charge-sheet is not filed within the meaning of Section 173(2) investigation remains pending. It, however, does not preclude an investigation officer to carry on further investigation despite filing of a police report, no terms of Section 173(8).

The statutory scheme does not lead to a conclusion in regard to an investigation leading to filing of final forms under Section 173(2) and further investigation contemplated under Section 173(8).

Whereas only when a charge-sheet is not filed and investigation is kept pending, benefit of Section 167(2) proviso would be available to an offender; once, however, a charge-sheet is filed, the said right ceases. Such a right does not revive only because a further investigation remains pending within the meaning of Section 173(8).

c. Warrant Cases: According to Section 2(x) of Code of Criminal Procedure, 1973 a warrant case is one which relates to offenses punishable with death, imprisonment for life or imprisonment for a term exceeding two years. The trial in warrant cases starts either by the filing of FIR in a police station or by filing a complaint before a magistrate. Later, if the magistrate is satisfied that the offense is punishable for more than two years, he sends the

case to the sessions court for trial. The process of sending it to sessions court is called “committing it to sessions court”.

Important features of a warrant case are:

- Charges must be mentioned in a warrant case
- Personal appearance of accused is mandatory
- A warrant case cannot be converted into a summons case
- The accused can examine and cross-examine the witnesses more than once.
- The magistrate should ensure that the provisions of Section 207 are .
- Section 207 of Cr. P.C. 1973, include the supply of copies such as police report, FIR, statements recorded or any other relevant document to the accused.

The stages of trial in warrant cases are given from Section 238 to Section 250 of the Code of Criminal Procedure, 1973.

Summon Cases: According to Section 2(w) of Code of Criminal Procedure, 1973, Those cases in which an offense is punishable with an imprisonment of fewer than two years is a summon case. A summon case doesn't require the method of preparing the evidence. Nevertheless, a summon case can be converted into a warrant case by the magistrate if after looking into the case he thinks that the case is not a summon case.

Important points about summons case

- A summons case can be converted into a warrant case.
- The person accused need not be present personally.
- The person accused should be informed about the charges orally. No need for framing the charges in writing.
- The accused gets only one opportunity to cross-examine the witnesses.

The different stages of criminal trial in a summon case are given from Section 251 to Section 259 of the Code of Criminal procedure.

d. Compoundable Offence: Compoundable offences are those offences where, the complainant (one who has filed the case, i.e. the victim), enter into a compromise, and agrees to have the charges dropped against the accused. However, such a compromise, should be a "Bonafide," and not for any consideration to which the complainant is not entitled to.

Section 320 of the CrPC looks at compounding of offences. Compoundable offences are less serious criminal offences and are of two different types mentioned in tables in Section 320 of the CrPC, as follows:

1. Court permission is not required before compounding – Examples of these offences include adultery, causing hurt, defamation criminal trespass

2. Court permission is required before compounding – Examples of such offences are theft, criminal breach of trust, voluntarily causing grievous hurt, assault on a woman with intention to outrage her modesty, dishonest misappropriation of property amongst others.

Application for compounding the offence shall be made before the same court before which the trial is proceeding. Once an offence has been compounded it shall have the same effect, as if, the accused has been acquitted of the charges.

Non Compoundable offences: There are some offences, which cannot be compounded. They can only be quashed. The reason for this is, because the nature of offence is so grave and criminal, that the Accused cannot be allowed to go scot-free. Here, in these types of cases generally, it is the "state", i.e. police, who has filed the case, and hence the question of complainant entering into compromise does not arise.

All those offences, which are not mentioned in the list under section (320) of CrPC, are non-compoundable offences.

Under a non-compoundable offense, a private party as well as the society, both are affected by such offenses.

In Non-compoundable offense, no compromise is allowed. Even the court does not have the authority and power to compound such offense. Full trial is held which ends with the acquittal or conviction of the offender, based on the evidence given.

e. Charge Sheet: The Code of Criminal Procedure provides for certain reports which the investigating police officer is required to send from time to time. They are to be sent at three different stages of investigation. They are— (1)

A preliminary report when an officer-in-charge of the police station sends to the Magistrate under Section 157.

(2) A report from the subordinate police officer to the officer-in-charge of the police station under Section 168, and

(3) A final report of the police officer after the completion of investigation to be sent to the Magistrate under Section 173. This report is commonly called as 'chargesheet' or "challan".

The filing of final report on completion of investigation is absolutely necessary and it should be sent to the Magistrate without delay. The report is to be sent in the prescribed form, and should contain all details as specified in Section 173 (2) (i) (a) to (g). However, the final report need not contain findings of facts as recorded by the Investigation Officer, nor he is expected to give clear chit to the accused by exercising power of a Court or judicial authority.

The Magistrate has the jurisdiction to differ with the conclusions arrived at by the investigating police officer in his final report and may direct that the accused person be summoned and tried or committed to the Court of Session for trial, as the case may be.⁵⁰

The Supreme Court in *Satya Narayan v. State of Bihar*, held that a report under Section 173 (2) has to be accompanied by all the relevant documents and statements of the witnesses mentioned therein as required by sub-section (5) of this section. The whole of it is to be submitted as a final report to the Court.

The Supreme Court in *Dinesh Dalmia v. CBI* observed that a charge sheet is a final report within the meaning of Section 173 (2), Cr. P.C. It is filed so as to enable the court concerned to apply its mind as to whether cognizance of the offence thereupon should be taken or not.

Charge sheet must state the offence or offences committed and who committed them. In case the accused is absconding, the Investigation Officer need not wait for filing the charge sheet till the accused is arrested, provided he finds sufficient evidence against the accused.

The Magistrate cannot refuse to accept the charge-sheet submitted by the police on the ground that it did not accompany the Forensic Science Laboratory Report, or it was not submitted within the stipulated period of time fixed for particular police station.

But where the final report submitted by the police under Section 173(2) does not accompany all the documents as required under sub-clause (5), the Magistrate will not be justified in taking cognizance of offence on the basis of such an incomplete report and if he does so, his order would be liable to be quashed.

f. Discharge: Discharge is an order of the court, not being the final order of the court, that is known as judgment which always ends in either conviction or acquittal, but on the contrary is that order that relieves a person of a legal proceeding against him for the time being primarily due to the fact that there is no prima facie evidence against him to justify further Proceedings.

Sections 239 and 240 of Cr.P.C. are to be read together. If upon consideration of all the documents alluded to in Section 173 Cr.P.C. and examining the accused, if considered important by the Magistrate and also after hearing both sides, the Magistrate considers the charge as baseless, he must discharge the accused.

g. Acquittal: (Section 232) If after taking the evidence for the prosecution, examining the accused and hearing the prosecution and the defence on the point, the Judge considers that there is no evidence that the accused committed the offence, the judge shall record an order of acquittal.

Acquittal is passed as the final order of the court by which the accused person is absolved of the charges against him, an order of acquittal thereby established innocence of the accused.

h. Complaint: "Complaint" means any allegation made orally or in writing to a Magistrate, with a view to his taking action under this Code that some person, whether known or unknown, has committed an offence, but it does not include a police report. [Section 2(d)]

However, a report made by the police officer in a case which discloses after investigation, the commission of a non-cognizable offence shall be deemed to be a complaint, and the police officer making the report as a complainant. In general a complaint into an offence can be filed by any person except in cases of offences relating to marriage, defamation and offences mentioned under Sections 195 and 197. A complaint in a criminal case is what a plaint is in a civil case. The requisites of a complaint are:

- an oral or a written allegation;

- some person known or unknown has committed an offence;
- it must be made to a magistrate; and
- it must be made with the object that he should take action.

There is no particular format of a complaint. A petition addressed to the Magistrate containing an allegation that an offence has been committed, and ending with a prayer that the culprit be suitably dealt with is a complaint. (**Mohd. Yousuf v. Afaq Jahan**, AIR 2006 SC 705)

Police report is expressly excluded from the definition of complaint but the explanation to Section 2(d) makes it clear that such report shall be deemed to be a complaint where after investigation it discloses commission of a non-cognizable offence. Police report means a report forwarded by a police officer to a Magistrate under Subsection (2) of Section 173.

i. **Public Prosecutor:** The importance of impartiality in the tribunal depends on the integrity of the person in charge of the prosecution, namely Public Prosecutor. A crime is a wrong not only against the individual victim but also against the society at large. The Public Prosecutor is not a protagonist of any party. In theory, he stands for the State in whose name all the prosecutions are conducted. The Public Prosecutor or the Assistant Public Prosecutor has the authority to appear and plead before any Court in any case entrusted to him. With the Consent of the Court, he can withdraw the prosecution against any person. He can give advice to the police or other Government Departments with regard to the prosecution of any person if his advice is so sought. The ideal Public Prosecutor is not concerned with the securing the convictions, or with satisfying departments of the State Government with which he has to be in contact. He must consider himself as an agent of justice. There are following classes of Public Prosecutors:

1. Public Prosecutor appointed by the Central Government
2. Public Prosecutor appointed by the State Government
3. Additional Public Prosecutor appointed by the State Government
4. Special Public Prosecutor appointed by the Central Government
5. Special Public Prosecutor appointed by the State Government

According to the pattern set by Cr. P.C., while Public Prosecutor (including Additional Public Prosecutors and Special Public Prosecutors) are to conduct prosecutions and other criminal proceedings in the Sessions Courts and High Courts, Assistant Public Prosecutors are appointed for conducting prosecutions in the Magistrate's Courts.

A person shall be eligible to be appointed in the High Court as Public Prosecutor if he has been in practice as an advocate for not less than 7 years. The appointing authority can make the appointment only after consultation with the High Court. The State Government may appoint a Director of Public Prosecutors but he shall be functioning under the Advocate General of the State. Special Public Prosecutors which are appointed by the Central & State Governments, are those advocates who have been in the practise for not less than 10 years. Section 25 of the Code of Criminal Procedure, 1973 (the Code) makes provisions prescribing eligibility qualification for being appointed as Assistant Public Prosecutor as well as provisions for appointment of such prosecutors for

conducting prosecutions in the Magistrate's Courts. The Provisions contained in sections 24 and 25 of the Code do not give an adequate idea as to the actual organisation of the prosecuting agency in the district or as to the hierarchy or the administrative control envisaged therein. Generally speaking, Prosecution work in the Magistrate's Courts is under directions of the police department, while the prosecution of trial in Sessions Court is under the general control of the District Magistrate.

The object of the criminal trial is to find out the truth and determine the guilt or innocence of the accused. The duty of the Prosecutor in such a trial is not merely to secure conviction at all cost but to place before the Court whatever evidence is possessed by the prosecutor, whether it be in favour of or against the accused and to leave the Court to decide upon all such evidence. It is no part of the prosecutor's duty to obtain convictions by hook or crook.

The Prosecutor plays a very important role in the administration of justice. A Public Prosecutor should be personally indifferent to the result of the case. His duty should consist only in placing all the evidence available irrespective of the fact whether it goes against the accused or helps him, before the Court in order to aid the Court in discovering the truth. It would thus be seen that in machinery of justice, a Public Prosecutor has to play very responsible role; the impartiality of his conduct is as vital as the impartiality of the Court itself.

Q. Distinguish between the following:

a. Warrant case and Summons Case b. Bail and Bail Bonds c. Charge and Charge Sheet d. Discharge and Acquittal e. Cognizable and Non Cognizable Offences f. Compoundable Offence and Non Compoundable offence g. Complaint and First Information Report

a. Summons Case v. Warrant Case

"Summons case" means a case relating to an offence and not being a warrant case. [Section 2(w)] A "Warrant case" means a case relating to an offence punishable with death, imprisonment for life or imprisonment for a term exceeding two years. [Section 2(x)]

Those cases which are punishable with imprisonment for two years or less are summons cases, the rest are all warrant cases. Thus, the division is based on punishment which can be awarded. The procedure for the trial of summons cases is provided by Chapter XX and for warrant cases by Chapter XIX

It would be pertinent to bring out the differences between a summons case and a warrant case from the point of procedure to be adopted for trial of these cases. The differences between the two are as follows:

- (1) The Code of Criminal Procedure prescribes two procedures for the trial of a warrant case by Magistrates, namely, one to be adopted by the Magistrate in case instituted on a Police Report while the other in case instituted otherwise than on a Police Report. But there is only one procedure prescribed for trial of a summons case whether it is instituted on a Police Report or a complaint.
- (2) The trial of a warrant case as a summons case is a serious irregularity which would vitiate the trial if the accused has been prejudiced. But the trial of a summons case as a warrant-case is only an irregularity which is curable under Section 465 of the Code.

- (3) Where a warrant case has been tried as a summons case and it has resulted into acquittal of the accused, such acquittal shall operate only as a discharge under Section 245 of the Code. On the other hand where a summons case has been tried as a warrant case and the accused is discharged under Section 245, the discharge will amount to an acquittal under Section 255 of the Code.
- (4) When the accused appears or is brought before a Magistrate in a warrant case, the Magistrate shall proceed to hear the prosecution and take all such evidence as may be produced in support of the prosecution. But in a summons case, the particulars of offence are stated to the accused and he shall be asked whether he pleads guilty or wishes to defend himself.
- (5) Framing of a formal charge is necessary in a warrant case but it is not necessary in a summons case.
- (6) When the charges reveal both, a warrant case and a summons case, the former is to be preferred.
- (7) A charge under warrant case cannot be split up into its constituents for trial under a summons case.
- (8) In a warrant case, the accused gets more than one opportunity to cross-examine the prosecution witnesses whereas in a summons case he gets only one opportunity to cross-examine the prosecution witnesses.
- (9) A warrant case may result into discharge of the accused under Section 249 in the absence of the complainant but in a summons case, the result would be acquittal of the accused under Section 256 of the Code.
- (10) In a warrant case a complaint cannot be withdrawn by the complainant but in a summons case the complainant may withdraw the complaint with the permission of the Magistrate.
- (11) The Magistrate is empowered to convert a summons case into a warrant case under Chapter XX of the Code but a warrant case cannot be converted into a summons case.
- (12) In a warrant case, after convicting the accused, the Magistrate may take evidence regarding the alleged previous conviction, which is not admitted by the accused, and shall record his finding thereon. But no such power is conferred on the Magistrate while trying the accused in a summons case.
- (13) In a summons case, after the issue of summons, the accused may plead guilty by post without appearing before the Magistrate. But no such provision exists in trial of a warrant case.

b. Bail v. Bail Bonds

The difference between bail and bond can be drawn clearly on the following grounds:

1. Bail implies the provisional release of the accused who is awaiting trial, provided that a certain sum is deposited to the appropriate authority, as security, to assure their appearance in the court. Conversely, bond connotes the surety bond, i.e. the bonds person commits to making good, the loss caused if the defendant does not appear to the court when called.
2. In bail, the consideration is paid by the defendant or by someone on his/her behalf, such as friends or family. Unlike, the consideration in bond is paid by the bail bondsman who acts as a surety to the agreement.

3. In bail is allowed for a definite consideration, fixed by the court, whereas bond is available only if a third party who possesses credibility takes the responsibility of the debt and obligation of the accused.
4. The amount of bail is returned to the defendant at the end of the trial when all the court proceedings are complied with. On the other hand, the amount paid in the form of the fee, for the services rendered is not refunded.
5. The amount of bail is comparatively less than the bond because it does not involve interest.

c. Charge v. Charge sheet

- A Charge is a formal document stating the offence committed by the accused, while, a Charge-sheet is a report submitted by a police officer.
- Charge is framed by the Magistrate looking into the case. Charge-sheet is framed by the police.
- From the above mentioned points, it may be gathered that charge is judicial in nature whereas chargesheet is non-judicial in nature.
- Charge is always framed after inquiry. Charge-sheet is framed only after investigation of the case.
- Charge is thus, followed by trial and charge-sheet is followed by inquiry.

d. Discharge and Acquittal

A person who has been acquitted cannot be arrested for the same case in which he has been acquitted by the Court.

An acquittal may also result from absence of the complainant, or withdrawal or a compounding of offence.

An order of acquittal is a judicial decision taken after full inquiry establishing the innocence of accused.

A discharged person can be rearrested and committed for a further enquiry.

When a Magistrate proceeds with less serious offence, it amounts to a discharge of graver charge and the accused can be directed to be committed.

An order of discharge simply implies that there is no *prima facie* evidence against the accused to justify further enquiry in relation to the charge; such order does not establish anything regarding the guilt of the accused.

An acquittal bars second trial on the same facts and for the same offence, or on the same facts for any other offence for which different charges from the one made against the accused might have been made

A discharge does not bar the institution of fresh proceedings when new or better evidence becomes available against the accused.

under Section 221(1) of CrPC.

e. Cognizable Offences v. Non Cognizable Offences

The following points are relevant with respect to the difference between cognizable and non-cognizable offence:

1. The offence in which the cognizance of the crime is taken by the police on its own, as it does not need to wait for court's approval, is known as a cognizable offence. On the other hand, non-cognizable offence, as the name suggests, is the offence in which the police has no authority to apprehend a person for crime on its own, as explicit permission of the court is required.
2. In cognizable offence, the police can arrest a person without any warrant. As against this, a warrant is must in the case of non-cognizable offence.
3. In cognizable offence, court's order is not required to start an investigation. Conversely, in the noncognizable offence, first of all, court's order should be obtained for undertaking an investigation.
4. Cognizable offences are heinous crimes, whereas non-cognizable offences are not so serious.
5. Cognizable offence encompasses murder, rape, theft, kidnapping, counterfeiting, etc. On the contrary, non-cognizable offences include offences like forgery, cheating, assault, defamation and so forth.
6. For a cognizable offence, one can file FIR or make a complaint to the magistrate. Unlike, in case of noncognizable offence one can only make a complaint to the magistrate.

f. Difference between Compoundable and Non-compoundable offence

1. **Withdrawal of Charges** : In compoundable offence, charges against the accused can be withdrawn. While in non compoundable offence, the charges against the accused cannot be withdrawn.
2. **Nature of Crime** : In compoundable offence, the nature of the crime is not so serious. While, in non compoundable offence, the nature of the crime is serious.
3. **Compoundable** : In compoundable, offence is compoundable by with permission or without permission of court. While in non compoundable offence, offence cannot be compounded. It is only quashed.
4. **Affected parties** : In compoundable, it impacts only private person. While in non compoundable offence, it affects both, private person as well as the society at large.

5. Filing of case : In compoundable offence, case generally filed by private person. While in non compoundable offence, case generally filed by the state.

g. Complaint v. FIR

The difference between complaint and FIR are given in the points hereunder:

1. A written document prepared by the police, when the police get the information about the commission of a crime for the very first time, is known as FIR or first information report. Conversely, A petition filed with the magistrate that contains an accusation regarding the commission of an offence and a prayer is made that the accused should be penalized, is called complaint.
2. While a complaint has no prescribed format, FIR can only be registered in the format prescribed by the law.
3. One can make a complaint to the metropolitan magistrate, whereas an informant or plaintiff can lodge FIR to the police officer of the respective police station.
4. The complaint is made for both cognizable and non-cognizable offences. Unlike, only cognizable offences are covered in case of FIR.
5. Any person can make a complaint to the magistrate regarding the offence, except in the case of marriage and defamation wherein only aggrieved party can make a complaint. On the contrary, any person who is an aggrieved party, witness or is having the knowledge of the crime can file FIR.